CONTENDING APPROACHES IN DISARMAMENT AND THE FUTURE OF NUCLEAR NON-PROLIFERATION

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Thesis statement:

This paper is concerned with the future of the Non-Proliferation Treaty in the changing post Cold War environment and in the context of the United Nations' efforts to institutionalize non-proliferation in a manner consistent with the new international security paradigm. The new security paradigm, disarmament and non-proliferation under effective international control, has long been submerged by Cold War politics.

Yet it is a paradigm recognized in the language of the Non-Proliferation Treaty (NPT) and an accepted goal of the United Nations. The NPT was originally negotiated as both an arms control and disarmament treaty; the two being considered mutually interdependent by the United Nations community. Historically, the United States has advocated this understanding of the NPT while simultaneously developing new weapons for deterrence-or national security-purposes.

However, the majority of UN member states hold qualitative development to be counterproductive to the treaty's objectives; it negates progress in arsenal reductions and systematically legitimizes acquisition. Qualitative development, the hallmark of American deterrence policy, is seen as eroding the significance of the NPT's normative function and the corresponding commitment to an effective verification system for non-proliferation. Furthermore, the

Cold War paradigm, which justified the arms race, has ceased to exist. Thus, the international community must reject deterrence as an international security paradigm if non-proliferation is to be effectively institutionalized.

The United States' post Cold War policy of continued weapons development has fuelled the international community's dissatisfaction with both US policy and the structure of the treaty, as indicated by the discussion in this paper. The contentions over the arms race reveal the treaty to be inconsistent with the United Nations' efforts to define the international security paradigm as disarmament and non-proliferation under effective international control. Moreover, there are specific elements of the treaty which are problematic to the new paradigm; its restricted negotiating status, its discriminatory verification system, and its imbalance of rights and obligations.

Still, the international community considers a global nuclear verification treaty to be a necessity for international security. The NPT, although highly valued, is not seen as consistent with the changed global environment. A treaty such as the the Chemical Weapons Convention, on the other hand, is perceived as meeting security needs and at the same time is considered consistent with the new paradigm. The Chemical Weapons Convention is distinct from the NPT in its universalistic quality. A universalistic treaty may be defined as such if it is multilaterally negotiated, balances

the rights and obligations of States Parties, and includes a universally applied verification system.

Thus, I will argue that if a global verification treaty is universalistic, it will accommodate the new international security paradigm. Global treaties, such as the NPT, are currently necessary for verifying non-proliferation. A universalistic treaty provides an acceptable, exemplary way to institutionalize non-proliferation. According to the new international security paradigm, the system requires universalistic treaties to control international security concerns.

Introduction: The End of the Cold War: Non-Proliferation and the United Nations.

One of the emerging paradoxes of the post Cold War era is that as the major nuclear powers plan to reduce their nuclear arsenals, new threats to international security are emerging, including the continued proliferation of nuclear weapons. At the same time, new demands are being made upon the United Nations and the Security Council to curb proliferation. In the absence of Cold War politics, the international community has the potential to increase its effectiveness in the area of arms control and disarmament.

> The turning point in the scale and scope of United Nations activities can be discerned after the year 1987. For the first time in many years, agreement on a wide range of issues became possible, effectively marking than end to the cold war.[1]

It is this combination of circumstances which is historically unique and gives the United Nations an opportunity to *reassess its approaches to disarmament with the aim of guaranteeing non-proliferation into the future.*

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[1]Boutros Boutros-Ghali, "Report of the Secretary General on the Work of the Organization." A/47/1. United Nations: New York, 11/9/92. p.5.

> The bipolar competition, which carried an ever present threat of nuclear devastation, provided a tenuous framework for international relations. New and more enduring structures must now be built.[2]

Non-proliferation is an important reality for continued reversal of the nuclear arms race, nuclear disarmament, and an eventual prohibition on nuclear weapons. Without controlling the spread of weapons, there is little purpose to destroying existing stockpiles. An added, immediate concern is that the regional violence which has sprung up after the Cold War may lead to an increased demand for the fissionable materials from dismantled weapons; conventional warfare may escalate to weapons of mass destruction. The "urgency of breaking with past habits at this particularly critical moment in modern history" lies in preventing global nuclear proliferation.[3]

The two existing legal multilateral instruments for addressing non-proliferation, the 1968 Non-Proliferation Treaty (NPT) and Nuclear Weapon Free Zones (NWFZs), were created and envisioned in the context of Cold War politics. As a result, NPT obligations reflected the disparity between nuclear powers and non-nuclear powers which existed at the time of its inception, and NWFZs were continually compromised

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[2]ibid. p.3.

[3]Daniel Ellsberg, in Jerry Sanders' "Nuclear Security and the Soviet Collapse." World Policy Journal, Vol. IX, no.1, Winter 1991-2. World Policy Institute: New York, 1992.

by the strategic stationing of nuclear weapons by the Superpowers.[4]

The continued escalation of the Superpower nuclear arms race after signing the NPT made the prospect of ending the qualitative race grim; much of the treaty's burden fell upon the non-nuclear weapon states and, consequently, upon containing *horizontal* proliferation.[5] Security requirements, as defined by the superpowers, also did not respect the denuclearized status many nations were trying to achieve and

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[4]see, for example, Ingemar Lindahl's discussion in The Soviet Union and the Nordic Nuclear-Weapon-Free Zone Proposal. Macmillan Press Ltd: Hong Kong, 1988.

[5]In the abstract, vertical proliferation refers an increase in arsenals which already exist within a single nation. Although vertical proliferation may describe simply an absolute increase in numbers of warheads, it has historically been inseparable from qualitative development. The Cold War arms race was largely a race to improve the technology or power of each new warhead. Over the last forty years, the United States has shifted its emphasis from numbers of arsenals to developing smaller weapons and more powerful weapons/weapons delivery systems. However, in the wake of recent arms reductions, qualitative development has largely been channelled into the 'upgrading' of nuclear elements within existing warheads-based upon the results of underground nuclear tests-and the extension of nuclear systems to include: new physical properties such as laser beams, new laser-based extraction and recycling techniques such as isotope separation, and the development of space based launching sites leftover from the largely abandoned SDI and Brilliant Pebbles plans. For the purposes of this paper, then, vertical proliferation refers to the US' continued development of nuclear weapons technology and delivery systems and is used synonymously with qualitative development. Horizontal proliferation, in contrast, signifies an increase in the total number of nations acquiring nuclear weapons. During the Cold War, the United States deemed horizontal proliferation to be a global threat, but its own policy (of vertical proliferation) as contributing to global stability. The rights and obligations of the states parties to the NPT reflect this double standard.

hence, efforts to institutionalize Nuclear-Weapon-Free Zones were effectively blocked.

However, given the end of the Cold War and current inroads in nuclear disarmament, the United Nations community has begun to actively assess the prospects for both the NPT and NWFZs in the new, evolving international order. For, not only did the Cold War arms race hinder the effectiveness of the treaties, but the *machinery* of the UN was similarly frozen in bipolar political rivalry. The UN itself being in transition, there is the question of how it will adapt to the new situation and which institutions will finally be utilized to promote its new approaches.

Stockpile reduction has signalled an opportunity for the UN to achieve its long term goals in nuclear disarmament. While some may argue that in the absence of the Cold War, nuclear deterrence doctrine no longer predominates, it is exactly this vacuum which must be filled in order to prevent the doctrine of deterrence from prevailing again.

> At a moment when substantial disarmament is finally beginning to occur, there can be no justification for any State, anywhere, to acquire the tools and the technologies for mass destruction.[6]

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[6]Boutros Boutros-Ghali. "New Dimensions of Arms Regulation and Disarmament in the Post-Cold War Era." United Nations Document: A/C.1/47/7. October, 1992.

Since the Gulf War, the NPT has received growing attention as a crucial mechanism for filling the international security gap left from Cold War deterrence policies. As its 1995 deadline for extension or reforming nears, the continuation of its prominence in the non-proliferation regime has become of major concern.

This paper addresses several contending approaches to disarmament which have arisen in connection with the interpretation, implementation and function of the Non-Proliferation Treaty. The discussion is centered upon the treaty as the global mechanism for curbing proliferation; it is now under scrutiny and will inevitably affect the processes and outcomes of the future spread of weapons.

The issue of vertical proliferation, or qualitative development-is the theme for bringing out the debates relevant to the future of the NPT. The purpose is to show where the divergence of views continues to effectively prevent negotiations and agreements on containing proliferation and how different security perceptions are affecting consensus.

Given this context, this paper seeks to explain the 1) relevance of ending the qualitative nuclear arms race in relation to strengthening global efforts to contain horizontal proliferation, 2)the imperative for democratizing the UN's negotiating bodies, universalizing its legal instruments, and creating a global repository/verification

system for nuclear weapons, and 3)the compatibility of a universalistic treaty with the new international security paradigm.

Indeed, these three aspects are closely linked. The new international security paradigm, nuclear disarmament and non-proliferation under effective international control, necessarily implies an end to the qualitative arms race. Universalistic treaties address the qualitative concern by implementing a verification system which outlaws new weapons developments and is applied equally to all States Parties.

The multilateral process of negotiating a universalistic treaty and the democratic nature of its related institutions allow for a more collective approach, and thus meet the paradigm's criteria of international control. The process of weapons elimination, within a verifiable limit on qualitative development, is an interdependent and necessary component for the successful control of weapons proliferation.

From this, it may be said that universalistic treaties represent a more holistic means to disarmament. Conversely, to achieve universalistic treaties, *arms races must be accorded far more importance in the international community's overall security agenda*, non-proliferation being central to that agenda.

Where there is the most divergence in approaches to disarmament, there is the most potential for a United Nations role in bridging gaps and building consensus. This

responsibility requires more than the cooperation of member states but their political will to build upon, transform and infuse UN instruments and institutions with the goal of halting proliferation.

Structure of the Paper

Chapter One reviews the literature relevant to the topic, with the aim of building the theoretical and historical context in which universalistic treaties are placed. Several key concepts are explored, including the juxtaposition of realist and legalistic approaches to international law.

Chapter Two explains the importance of the NPT in the global non-proliferation regime. Two main premises are put forth; its role as a legal instrument in maintaining a non-proliferation norm and its provisions for an international verification regime to reinforce the norm. The NPT's connection to the success of regional non-proliferation measures is also developed.

Chapter Three establishes the tie between the Non-Proliferation Treaty and the goal of general and complete nuclear disarmament, as it is understood by the majority of United Nations members; more specifically, the significance of a Comprehensive Test Ban in the context of nuclear weapon states' legal obligations. This is contrasted with the

security perception of the United States which maintains that deterrence will continue to play a major role in U.S. security, despite those changes recognized by the international community as negating US justification for deterrence.

Chapter Four looks at the negotiating process surrounding NPT obligations. It is meant to show how the debate on the structure of negotiations has become an intrinsic part of the debate over the test ban and has created an impetus to democratize multilateral instruments. The United States has managed to effectively separate its security concerns from international security concerns while the recently concluded Chemical Weapons Convention (CWC) has strengthened the argument that they must be pursued together, in a multilateral framework. The CWC is established as a successful universalistic treaty.

The 1995 NPT Review Conference is then considered in light of the tension over the qualitative race, democratization, and universalization of the NPT itself. Here the range of options for the treaty emerges; from maintaining the status quo to revising the text to suit the post Cold War environment.

Chapter Five looks at the way in which actions of the Security Council in the Gulf War have contributed to the perception that the treaty's mechanisms merely need to be strengthened, as they are. In contrast to the success of the

CWC, the Gulf War highlights the potential dangers of enforcing a non-universalistic treaty under the auspices of collective security. The new institutional links created to combat proliferation may actually contribute to states' alienation from the international system and the norm of non-proliferation.

The conclusion considers the potential for United Nations institutions to halt proliferation, both in terms of the NPT and the expanded role of the UN. From both status quo and revisionist perspectives, any treaty will require increased funding and expansion of the International Atomic Energy Agency's (IAEA) verification and confidence building activities.

In addition to transforming the NPT into a universalistic treaty, the Council's role in international affairs may continue the shift towards crisis management and prevention strategies necessitated by the new paradigm. The access of the international community to verification technology and the legal integration of the non-proliferation norm into other United Nations areas are proposed as methods for delegitimizing acquisition.

Chapter One: The Universalistic Framework

The advent of universalistic treaties must be seen in a larger context of the evolution of security paradigms. More specifically, in the effort to apply a collective solution to the problem of nuclear weapons proliferation. Kamelesh Sharma, a former Indian Ambassador to Germany, has described the function of international law and multilateralism in instituting collective security as follows:

> Although the search for the ideal paradigm for ensuring lasting security for all nations has been arduous and painful, the vision of collective security to which all nations may subscribe has gained ground... A fitful progression towards the logic of multilateralism has characterized the present century. National policy-making and international diplomacy and obligations are a part of an interactive process which imposes its own disciplining form and, where required, restraints on the dynamics. Broadly speaking, the national policy objective of refraining from war can be legalized or formalized through obligations entered into international treaties...[to] safeguard the concerns of individual member nations and check threatening or destabilizing developments which may emerge without multilateral restraints.[7]

Although multilateralism, exemplified by the United Nations, may be considered a modern phenomenon, the concept

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[7]Sharma, p.105-106.

of achieving collective security through legal obligation and national restraint was explored by early theorists.

Grotius thought that laws originating between states had the advantage,"..not of particular states, but of the great society of states."[8] Obeying the laws of nations was comparable to the individual obeying state law; the state which transgressed such laws was undermining its own guarantee to future peace.[9] Thus, states were obligated by a shared notion of security, not authority, in following common rules and practices.

For Kant, however, it was only imaginable for states to enter into agreements limiting their sovereignty if they were somehow all bound by a common authority. "For states having relations with one another there can be no other method of escaping from the lawless condition" than by renouncing freedom in exchange for "...compulsory public laws, thus forming an international State which would gradually extend and include all the peoples of the world."[10]

Yet the law of nations rested upon treaties which, at the moment of conclusion, were ready to be broken.[11] Furthermore, because the formation of a single, global state was contrary to the very nature of states, the best that

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[8]Hugo Grotius.(1625) Prolegomena to the Law of War and Peace. The Liberal Arts Press: New York, 1957. p.13.
[9]ibid. p.14.
[10]Emmanuel Kant. Perpetual Peace.(1796) Peace Book Company: London, 1939. p.32.
[11]ibid. p.50.

could be hoped for was an "ever-extending confederation, existing to prevent war, yet with the enduring risk of its proving ineffective."[12] The United Nations attempts Kant's description of a confederation, founded on the principle of equality and self determination of its members and embodied in a Charter.

Realist thinkers, in contrast to United Nations aspirations, have stressed the limitations of international law and a confederation of states within the domain of power politics. Their analysis, in reiterating states' ability to act outside of the law when it is suitable, poses an important question of the relationship between international power and international law.

Carr, for example, maintained that international law would always reflect a pre-existing political order, which reflected the bias of certain states and whose existence alone made international law binding.[13] Despite a universal recognition of international law, there would always be those states asserting the unconditionality of certain laws because their interests were maintained by the status quo.[14]

In the absence of a binding world court jurisdiction, Carr considered customary law to be the only real source of international law. The embodiment of customary law in

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[12]ibid. p.32.
[13]Edward Hallett Carr. The Twenty Years' Crisis.(1939) Harper and Row Publishers: New York, 1964. p.178.
[14]ibid. p.182.

multilateral treaties was not successful because the treaties could not bind those states who did not accept it.[15] In turn, because treaties were not unconditionally applied to all members of the international community, they did not capture the essential quality of law.

Although international law was a function of the political community of nations, Carr thought its defects were due to the "embryonic character" of the community in which it functioned.[16] The problem particular to the embryonic stage was the absence of rules applying equally to all. Thus, while asserting the predominance of the realist paradigm, Carr's position did not preclude the possibility of a strengthened international community based on law.

The status quo tendency of law and the rights of national sovereignty exercised in deference to multilateral treaties are two major reasons for states to reject international law. Treaty rejection also exhibited, for Carr, a deeper rationale; it was an instrument of redress available to those in the international community, reflective of their states' power position within the system.

Given such a political structure, treaty rejection could be based on a perception of immorality of its contents or because it "is inequitable in the sense that it imposes conditions flagrantly incompatible with the existing

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[15]ibid. p.171.
[16]ibid. p.178.

relations of power between the contracting parties."[17] Laws used by (more powerful) states as weapons would not be seen as moral, and therefore they would be non-binding. Due to this tendency, Carr saw the observance of international law being maintained "only in so far as the law recognizes effective political machinery through which it can itself be modified and superseded."[18] Political or hegemonic forces must be in equilibrium for this to happen.

This notion of equilibrium might be conceived, by realists, as arising from a traditional balance of power prescription. If pursuit of a balance of power is inherent in state relations, as Morganthau believes, then this struggle produces not only war, but also the basis from which peace may be maintained.[19]

Yet equilibrium could also be conceived as a recognized level of equality, reached through concerted international change. The inherent power/redress structure in the international system does not preclude the possibility that the standards of power and instruments of redress may change- or even merge in pursuing a reconciliation of conflicting goals. This paper considers "equilibrium' in Morganthau's traditional power sense as being superseded by a recognition

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[17]ibid. p.188.
[18]ibid. p.192.
[19]Hans Morganthau. Politics Among Nations. Knopf: New York, 1960. p.23. International law, as a basis for equilibrium, was inadequate due to the lack of enforcement agency.

of a new security paradigm, which itself creates an effective political machinery (the United Nations) to institutionalize it (through universalistic treaties.)

Still, theorists subsequent to Carr have reinforced that the concept of the state is incompatible with that of system equilibrium. This is largely attributed to the nature of the system, not the state. Neorealists, or structural realists, emphasize national security policy as the rational response to an international system of anarchy.

Waltz has characterized this 'self help'[20] behavior as necessary in a system, which by its anarchical and hierarchical structure, makes collective action impossible. The emphasis on the *adaptive* nature of the state to an insurmountable system structure presents the two as functioning separately (instead of mutually influencing one another) and relies on positivism; the *a priori* existence of the system is irrefutable.

For Waltz, international government will always encounter a hierarchy of states fighting over its means of control in their quest to obtain security-which is equivalent to maintaining their position within the system.[21] Similarly, all other processes occurring within the system are bound by the system; international institutions cannot transform

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[20]Kenneth Waltz. Theory of International Politics. Addison Wesley Publishers, Inc., 1979.
[21]ibid. p.111, 126.

structure.[22] Moreover, aside from those states aiming for world hegemony, the use of force does not threaten the international system.[23]

Waltz's subordination of power to a process (means) utilized in obtaining security (ends) creates a functional distinction between the two. Yet, as arms races, deterrence policy, and the proliferation of nuclear weapons demonstrate, *power is generally equated with security.* The Cold War, in particular, also demonstrated that *positional status within the system was prone to new definitions or recognitions of position created by qualitative developments in weaponry.*

Given the interrelatedness of power and security and the claim that the international system is defined by its most powerful actors,[24] it follows that states will necessarily incorporate the more powerful states' definition/practice of what constitutes security. If the priority is in maintaining their position(security) and the *standards* of their position (security) changes, security is no longer a static concept and, as such, is not constrained by neorealist behavioral theory.

Grieco, in following Waltz's conception of the international system, argues that anarchy is not merely the absence of an international enforcement agency but the

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[22]ibid. p.114.
[23]ibid. p.112.
[24]Kenneth Waltz. Man, the State, and War. Colombia University Press: New York, 1959.

absence of any guarantee that violence will not be used against states by one another.[25] Force is the first learned rule of the international system. Still, once the force of nuclear arsenals is learned, *states survival becomes a more fundamental security issue than their relative gains within a system hierarchy.*

Contrary to Waltz's assertion, the acquisition of nuclear weapons by those states seeking security short of world hegemony threatens the international system due to nuclear war's global effect. During the Cold War nuclear weapons created a situation in which all nations' security was indivisible but recourse to security rested within the national domain. The view that individual states do not effect the sum of states reinforces the tendency towards acquisition. Pursuing individual nuclear security adds to potential global devastation; further uniting security concerns while separating security responsibilities.

Modernization has meant the sharing of security concerns have long outpaced their shared management. Management involves far more complex and cooperative interactions than does the threat of pure force; namely the development of norms, law, consensus, tools for crisis intervention and verification.

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[25]Joseph M. Grieco. "Anarchy and the Limits of Cooperation: a Realist Critique of the Newest Liberal Institutionalism." International Organization, Vol 42, #3. World Peace Foundation: Massachusetts, 1988. p.497-498.

Neorealism cannot recognize modernization's effect on inter-state relations as fundamentally transforming the global normative structure in which states operate. There simply are no security threats which *require* true collective institutionalization and, hence, a move away from an anarchistic system. There can be no significant evolution of international law, practices, and institutions.

Indeed, as Wendt has argued, the realist view of anarchy "justifies disinterest in the institutional transformation of identities and interests..." and thus rationalizes structure over process.[26] Yet, international institutionalization is a "...process of internalizing new identities and interests, not something occurring outside them and affecting only behavior; socialization is a cognitive process." [27] The resulting "...transformations of identity and interest through process *are* transformations of structure."[28]

As such, Wendt argues, there is no intrinsic logic to anarchy; the self help argument is a social construct; "Anarchy is what states make of it."[29] Power is not objective but dependent upon intersubjective understandings and expectations; collective meanings which organize our

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[26]Alexander Wendt. "Anarchy is What States Make of it: The Social Construction of Power Politics." International Organization Vol 46, #2. World Peace Foundation: Massachusetts, 1992.
[27]ibid. p.399.
[28]ibid. (my ital.) p.393.
[29]ibid. p.395.

actions.[30] Contrary to neorealism's reductionism of national interest to (static) objective capabilities, national interests are formed from (changing) practices, identities and situations.[31]

With states' ability to shape their own environment, institutionalization is not merely, as realists would hold, a reflection of hegemonic policy. Rather, as Kratochwil has pointed out, institutionalization derives its strength from the power of norm-regulated practices.[32] Indeed, norms "fortify socially optimal solutions against the temptations of individually rational objections" and, in doing so, facilitate discourse, negotiations, and the formation of a collective rationality.[33]

Norm building may be seen as a means of transforming practices without a total break from the current system. If norms are the outcome of consensus, and not the imposed morality of a system hegemon, there is a shared stake in their definition. For this reason, international law, in codifying this process, can instill obligation more than the threat of enforcement.

The interactive approach to process and structure is key to understanding any *historical progression* of international

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[30]ibid. p.397.
[31]ibid. p.398.
[32]Friedrich V. Kratochwil. Rules, Norms, and Decisions. Cambridge University Press: Britain, 1989. p.63.
[33]ibid. p.48, 70.

relations. For this reason, systems transformations have been better conceptualized by the functionalist perspective, originally put forth by Mitrany.[34] He acknowledged that nations' sovereignty could be challenged by the indirect rise of other entities besides the state to meet the needs of the international system. International organizations would serve in areas which were functional rather than political (and therefore would encounter the least resistance from the state.) Eventually, economic functionalism would spread to the domain of politics to produce a more peaceful world system.

Realists certainly would agree that during the Cold War era, rapid economic integration allowed for transnational and non-state actors to gain new, significant roles in the international arena. Still, these entities would always be subordinated to the national interests of individual states-especially when such interests were threatened. Complex interdependence could only affect the international system and national sovereignty to a limited degree.

However, as Luard and other global thinkers have pointed out, economic integration has meant that the welfare of other states may affect a nation more than its own domestic policies;[35] the related globalization of (economic) conflicts

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[34]David Mitrany. A Working Peace System. National Peace Council: London, 1946.
[35]Evan Louard. The Globalization of Politics. New York University Press: New York, 1990. p.169.

has political implications. Integration thus affects those areas traditionally thought of as being in a separate, political domain. As a result, international political institutions are involved and, functionally, must deal with these problems on a world wide basis.[36]

Yet, as these institutions strive for global jurisdiction, the United Nations Charter reinforces state sovereignty.[37] The subsequent tension is apparent in United Nations institutions attempting to control the spread and possession of weapons of mass destruction. The organizations working for disarmament are dependent upon the cooperation and sponsorship of the very entities whose commitment to arms is legitimated by the Charter and their membership in the UN. As such, when states do accept the jurisdiction of international institutions in the area of weaponry, (their) national security requirements are effectively reconstituted to include those elements *traditionally thought of as beyond national boundaries and exempt from outside jurisdiction.*

Constitutive reform is theoretically consistent with Luard's extension of the functionalist/economic notion of 'system needs' one encompassing systematic security requirements. In short, he finds the destructive power of modern warfare means that no single government can safeguard its people and the traditional concept of national security

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[36]ibid. p.170.
[37]ibid. p.171.

has become obsolete.[38] That security requirements change is fundamental to understanding why international institutions must adapt, as in the case of the NPT, in order to accommodate the new system's needs.

From this, it follows that traditional, narrowly defined national security practices/interests will conflict with an internationalized notion of security. If a more global view of security is systemically required and is being defined by states, a more democratic approach to defining security, representative of multilateralism, is necessitated.

In multilateral negotiations, the bureaucracy, lack of authority, and limited decision making capabilities characteristic of international organizations (operating from the input of various, conflicting national interests) is bypassed through direct national involvement. *Consensus building cannot be separated from the process of institutionalization.*

Thus, multilateralism involves a more collective definition of security requirements, facilitating commitment to the operation of the functional bodies needed for implementing a cooperative security system. Once multilateralism is institutionalized, the security function that once was the state's will be displaced; nuclear deterrence will be increasingly defined as offensive and its

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[38]ibid. p.19.

continuance an unrealistic attachment to sovereignty.

Consensus on institutionalizing a universalistic Non-Proliferation Treaty would effectively incorporate deterrence (power) states into the (legal, norm building, etc) practice of redress, decreasing the power of deterrence in defining international security. Norms, laws, crisis management, and verification are necessary to the functioning of the security requirements of the new paradigm; their strength derived from universal acceptance, codified in universalistic treaties.

The debate over defining the new international system's security requirements is a manifestation, to use Buzan's analysis, of the conflict between status quo and revisionist states. He distinguishes between revisionists seeking higher status in the established hierarchy from revolutionary revisionism, which encompasses an ideological challenge to the prevailing principles of the system.[39] In looking at the gradual build up of debate surrounding the NPT, Buzan's point that revolutionary revisionism may be incremental, rather than cataclysmic,[40] is well taken.

The United Nations itself reflects the paradox of building international society upon the recognition of sovereignty. It's system bridges the old and the new world order; conforming to the status quo and its institutions and,

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[39]Barry Buzan. "Change and Insecurity" in Barry Buzan and R.J. Barry Jones, eds. Change and the Study of International Relations. St. Martin's Press: New York, 1981. p.164.
[40]ibid. p.165.

at the same time, fulfilling a need for orderly, cooperative action on global problems.[41] Thus the organization encompasses both an 'end state' and a 'means state' with two different agendas.

In this context, Cold War deterrence policy served to override the conflict of status quo and revolutionary revisionism surrounding nuclear weapons technology and the need for collective security. The focus on the stability of superpower weapons masked a deeper incompatibility between the United States and the USSR/Third World revisionists.[42] Indeed, as deterrence policy leaves center stage on the global agenda, the debate over defining security itself occupies the United Nations, contentions over the NPT being an example.

The debate on defining security is largely expressed in national approaches to security systems. With regards to current nuclear policy, the US largely proscribes to an *individualistic* security system where states are indifferent to each others' security while the other UN member states wish to invigorate a *cooperative* system where the security of one is the responsibility of all; national interests are international interests.[43]

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[41]LeRoy Bennett. International Organizations. Prentice Hall: New Jersey, 1977. p.139.
[42]Buzan, p.165.
[43]Wendt, p. 400.

Cooperative security requires a conception of national interest

> ...which identifies so closely with the order of the global community as to make participation in the safeguarding of that order a virtually automatic response...this is not a matter of repudiating the national interest, or of neglecting it, but of defining it in terms of, and identifying it with, the international interest in peace and order.[44]

System change poses a threat to the US' Cold War identity and so there is resistance; the evolution of cooperation is incremental, involving an examination of the old ideas, self and other, and the "structures of interaction by which the ideas have been sustained".[45]

This transformation of systems has been viewed by several theorists in terms of a non-traditionally defined 'crisis' of international relations, where the continuity of a system is at risk. This paper attempts to show this type of crisis; the institutionalized, qualitative aspect of deterrence is challenged and the responding national security argument is no longer acceptable. Moreover, if the end of the Cold War may be considered a catalyst for system transformation, the Chemical Weapons Convention and the Gulf

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[44]Claude Inis. Power and International Relations. Random House: New York, 1962. p.199.
[45]Wendt, p. 411-420.

War serve as test cases for the compatibility of universalistic treaties with the transforming system.

The crisis of Cold War security patterns itself is the result of the larger process of modernization. The acceleration of development, in Herz's terms, allows us to speak of a "...universality of information and discourse, universalization of concern, and ubiquitousness of power and weapons."[46] The consequence of modernization, particularly technology, is international instability. Avoiding catastrophe presupposes a control of weapons of mass destruction and, as such, a measure of control by world authority over national sovereignty.[47]

Thus, Luard's broader view of security may be conceived of as a functional response to the forces of modernization. Problems related to the nuclear age, in particular, demand a collective solution. It is the nature of modern nuclear warfare itself-with its implication of extinction-which dictates international change. Functionalism's challenge to statism in the national security realm is represented by the institutionalization of universalistic practices in an anarchic system.

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[46]John H. Herz. "The Impact of the Technological-Scientific Process on the International System." Theory of International Relations. Prentice-Hall, Inc.: New Jersey, 1968. p.109.
[47]ibid. p.125.

Contrary to this vision, Robert A. Strong explores several future scenarios arising from the reliance on nuclear weapons for security.[48] One possibility is that deterrence will be perpetual; proponents of nuclear weapons will continue to risk accidents and warfare in order to achieve survival because they believe there is no viable alternative. Another is that limited nuclear war will be utilized with the advent of more exacting, controllable technologies.

This paper holds that both deterrence and the potential for limited nuclear war will be exacerbated by the continued modernization of existing nuclear arsenals. As the Cold War demonstrated, weapons modernization has been guided by the logic of limited war. As an institutional practice, it has remained systematically self-legitimizing.

The incongruence of nuclear deterrence and collective security also has implications for the implementation of international law. Clark has noted that where deterrence implies the exercise of sovereign force to maintain order, collective security uses law to contain force.[49] Both the reinforcement of and restraint on sovereignty are simultaneous, apparent in debates on the new role and source of strength of the Security Council in global affairs.

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[48]Robert A. Strong. "The History of Nuclear Futures," Arms Control. Vol. 10, #1. Frank Cass and Co., Ltd: London, 1989.
[49]Ian Clark. Reform and Resistance in the International Order. Cambridge University Press: Boston, 1980.

Strong and Clark have similarly described the situation utilized in this paper's discussion of the Non-Proliferation Treaty. The United States' policy of sovereign nuclear deterrence is contrasted to the United Nations' proposed policy of a test ban and collective security. The source of tension is international law concerned with non-proliferation. An understanding of closely related concerns about the structure of the NPT and deterrence, however, illuminates the larger issue of defining security-and the paradigm shift requiring its resolution emerges.

The alternative to the paths of nuclear deterrence and limited war would be in Strong's conception of a New World Order. Based on alternative forms of security, the problem of a new order is a practical one of how to implement a system which outlaws nuclear weapons.[50] In this scenario, the danger inherent in the weapons outweighs any obstructions to world government; their very nature making world government necessary-and therefore possible.

As of this writing, the question of whether world governance can and will emerge in response to nuclear proliferation remains. Quite aside from feasibility, however, practices are hinged on identity and perception. Thus, the hope is that the political will needed to transform

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[50]ibid. p.92.

national identities, such that security is indivisible, is forthcoming.

Chapter Two: Why the Non-Proliferation Treaty:

There are several reasons for choosing the Non-Proliferation Treaty as the framework for analysis of the tension of a new international security paradigm. At the time of its creation, it was seen as the strongest use of a multilateral approach in balancing concerns for international security with the use of nuclear energy for peaceful purposes. Since then, the 'balance' appeal has largely been overshadowed but the NPT is considered by most UN member states to be the most important instrument for creating and maintaining the international non-proliferation norm.

Second, as the treaty is signed by the majority of United Nations member states, it provides a basis for present and future agreement upon a framework for instituting associated non-proliferation measures. Third, and closely related, is that the NPT provides the only technical and global verification regime with which to monitor the proliferation of nuclear weapons grade material and production sites.

Thus the treaty may be said to embody, in principle, the international norm of non-proliferation and encompass, in practice, the collective application of this norm. As such, this is the element of the treaty which constitutes its prominent value to the international community and collective

security. That the majority of UN member states are obligated to compromise their sovereignty for collective purposes represents a successful codification of norms.

The norm maintaining function of the treaty is implicit throughout this paper. This chapter's discussion is meant to 1)clarify the application function's relationship to the treaty and 2)highlight the role of both the normative and application functions of the treaty (in global non-proliferation) by demonstrating their relevance to regional nuclear disarmament. The application function will also be discussed in Chapters five and six.

Verification and the NPT

During the Cold War treaty compliance was less important than national security; as indicated by the use of pretexts in stalling arms control and disarmament negotiations.[51] With the recent disarmament measures between the former Superpowers and those reached in regional agreements, however, verification has become of central concern. Indeed, after treaties have been negotiated, the 'burden' of arms control and disarmament shifts from political will to compliance.

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[51]Bild, p.79.

Verification is crucial to any viable treaty because it certifies whether a particular legal commitment to disarmament or arms limitation is being met. As a result, its examining function goes beyond technical exercise to the interpretation of evidence and the very meaning of a treaty.[52] Verification thus serves to strengthen, maintain, or reveal inadequacies in the norm established by treaty commitments.

Effective technical monitoring guarantees security to those States Parties to a treaty and, if coupled with consistent compliance, enables the treaty itself to become a symbol of intention and legitimacy. Thus, to be successful in preventing proliferation, the NPT must provide adequate measures of verification to all parties concerned to ensure those parties' confidence and observation of provisions.[53]

Article III of the NPT provides for agreements between signatories and the International Atomic Energy Agency[54] to address this concern. Safeguards[55] are applied to peaceful, fissionable materials used by or under the control of those States Parties to the treaty.[56] The IAEA's function is

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[52]Ramcharan, p.334.
[53]United Nations. Final Document, Tenth Special Session on Disarmament. Para.38.New York, 1978.
[54]Instituted in 1957 with the dual purpose of promoting peaceful atomic energy and ensuring its associated activities are not military, the IAEA was later mobilized for negotiation and application of safeguards with NPT signatories.
[55]primarily accounting, physical containment(seals), surveillance (video), and on-site inspections.
[56]They are also applied to relevant exports to non-nuclear, non-NPT states as designated by the 1974 Trigger List and the

analytic as well as technical; it evaluates safeguards performance for meeting non-proliferation objectives, identifies occurring or potential treaty violations, and proposes methods for rectifying difficulties in safeguards implementation.

Furthermore, the IAEA's direct link to the Security Council and General Assembly[57] allows dissemination of information on international security threats to States Parties. This fosters visibility and accountability to any NPT violations.

After the experience of Iraq, the international community reiterated their support for a strengthened verification system and accountability as a crucial response to growing threats of proliferation and international security.[58] In accordance, the IAEA confirmed its right to perform special inspections when it believes undeclared materials or installations to be within its jurisdiction.[59]

1977 London Suppliers' Guidelines. (This is the statute based role, as opposed to the NPT based role.)

[57]Unique to the IAEA, this relationship differs from those of the Specialized Agencies created under Chapter IX of the Charter.

[58]see most statements on the subject made in the First Committee, United Nations, 1992. For specific statements on IAEA strengthening: Australia, Argentina, New Zealand, Romania, Algeria, United Arab Emirates, Republic of Korea, Malta, Ireland.

[59]Hans Blix, IAEA Director, statement to the UNGA. New York: 10/21/92.

Nuclear Weapon Free Zones and The IAEA

Although in the past, regions seeking to establish NWFZs were often in conflict with the Cold War policies of nuclear weapon states, the regional approach is now receiving wider international support; Nuclear-Weapon-Free Zones (NWFZs) are being strongly encouraged by the international community- including nuclear weapon states. Indeed, the goal of member states, as described by the UN Secretary General, should be to extend disarmament efforts to include multilateral arrangements, mutual example, and unilateral measures in the process of globalizing disarmament.[60]

Moreover, attempts to create zones in Southeast Asia, Korea, Africa, and the Middle East have recently gained momentum from the precedent set by the Treaty of Tlateloco, which established a NWFZ in Latin America. Tlateloco serves as a working model of how regional efforts fit into the globalization process referred to above.

The recent verification measures agreed upon by Argentina and Brazil were the primary contribution to the new status of Tlateloco. As a *realized* zone, locally monitored, Tlateloco is considered more effective in curbing proliferation than the NPT. Yet, in the actual process of reaching bilateral agreements, each instrument's status was,

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[60]Boutros Boutros-Ghali, "New Dimensions of Arms Regulation and Disarmament in the Post-Cold War Era." Report of the Secretary General, A/C.1/47/7, 1992. p.6.

in fact, mutually enhanced. This is because the modalities of the NPT served as a confidence building measure and reference point for zone type cooperation; successful negotiations were based upon their practical integration.

So although the treaty's recent implementation is attributed to a combination of factors, *its verification regime is considered foremost as a measure of its effectiveness in preventing proliferation.* Thus, the legitimacy building relationship of verification to disarmament treaties is also true for NWFZs; it was Argentina and Brazil's joint verification agreement that brought the Treaty of Tlateloco *into effect.*

Perhaps the IAEA's most important function in this third party context is its ability to carry out special inspections. This capability is shared by the treaty's own mechanisms[61] and may be initiated by any state party suspecting another party of future or current activity prohibited by the treaty. Inspections are backed by a system for rapid dissemination of any results to parties and the UN General Assembly and Security Council.[62] Hence, accountability fostered among treaty members is extended to the larger United Nations system-as it is with the NPT.

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[61]As provided for by the treaty's Agency Organismo para la Proscripcion de las Armas Nucleares en la Americana Latina (OPANAL),

[62]Article 16, Treaty for the Prohibition of Nuclear Weapons in Latin America: UN Treaty Series, vol. 634, No.9068.

While the overlapping of IAEA functions with regional mechanisms may be seen as balancing the political role of the regional organization with the technical responsibilities of compliance;[63] the IAEA has held a greater role in monitoring compliance through its safeguards system.[64] Thus, despite the secondary nature of IAEA safeguards in Argentina and Brazil's process of confidence building, the connection between IAEA verification and international security needs should not be underestimated.

Indeed, both Argentina and Brazil's programs had been identified by the international community as risks to proliferation in their region and, as a result, the primary objective of accepting IAEA safeguards was to assure the international community that they were not threats to regional and international security.[65] In utilizing the verification framework of the NPT, the two nations met the non-proliferation standards of the international community without adhering to what they consider to be a discriminatory treaty.

More importantly, both Argentina and Brazil have rejected the NPT while making effective use of its verification instrument to augment their own system of accounting and inspection. The IAEA's close working

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[63]Oyuela, p.156.
[64]ibid. p.156.
[65]Lamaziere, p.112.

relationship with Argentina and Brazil's joint agencies serves to reinforce the international trust created by the bilateral efforts.

In areas where the regional approach has not succeeded, however, there remains the problem of linkage; what will be the region's *terms* for implementing a zone. This is the current process of negotiating a NWFZ in the Middle East, where conflicting policies have prevented a zone. The NPT's verification regime plays a crucial role in building confidence in the interim.

This function is especially pertinent to the Middle East, where the nuclear dimension of the Arab-Israeli conflict was fully realized as a result of the Gulf War; the international community feared either Iraq might develop a bomb or Israel might retaliate with one.[66] Up until then, the "invisibility" of nuclear proliferation in the Middle East kept the situation politically tolerable.[67] In this way, the war highlighted instability in the region *with regards to the lack of effective instruments to prevent a nuclear war*

Despite consensus on the shared objective of a NWFZ, the regional groups involved still need to agree on the terms of implementation. In these situations, NPT modalities have and will continue to provide a confidence building function for

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[66]as pointed out by Avner Cohen in "Nuclear Arms Control in the Middle East: A Post Gulf War Perspective." New Outlook. Hashkafah Hadashah: Tel Aviv, 1990. p.31.
[67]from the statement by Avner Cohen in Kahn, p.120.

the parties involved. More specifically, verification agreements with the International Atomic Energy Agency are considered themselves as intent to abide by the non-proliferation norms surrounding the NPT.

Indeed, without Israel's accession to the NPT, there has been no basis for the international community to officially verify the existence of an Israeli nuclear weapons program. This has provided the justification for surrounding nations to maintain a chemical arsenal-or high levels of conventional forces-as counterforce to an unchecked threat. Clearly, the Middle East, among other regions, is in need of instruments to curb proliferation. Here, Israel's accession to IAEA Safeguards has a distinctive role in building regional confidence.[68]

Historically, Israel's condition for implementing a zone has been that it must be negotiated directly among the states involved. Egypt, conversely, has sought establishment of a zone through consultations mediated by the Secretary General. In response to this impasse, the General Assembly has recommended all states in the region accede to the Non-

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[68]Security Council resolution 487 of 1981 called for Israel to accede to IAEA safeguards, a position reflected in pursuant General Assembly and, more recently, IAEA resolutions. The US and Israel are against the resolution and they, along with several abstainers, maintain the language is discriminatory and that singling Israel out will only prove detrimental to the Madrid peace talks.

Proliferation Treaty, especially since several states have made their accession dependent upon Israel's.[69]

In 1981, Egypt unilaterally ratified the NPT in an effort to encourage Israel to follow, a situation which may have facilitated the establishment of Nuclear-Weapon-Free Zone under Article VII of the treaty.[70] Since that initiative, the Egyptian proposal has reflected NPT modalities and terms-an approach deemed 'apolitical'-while Israel and Washington have maintained that nothing short of a peace settlement will allow nuclear weapons to be addressed.[71]

Since zone negotiations have been effectively excluded from the Madrid peace process and the risks of proliferation are growing, there must be "new creative thinking on interim measures to address the problem of proliferation in a reality short of a comprehensive peace process."[72] Given the post Gulf War realization of the potential for hostilities to escalate, the international community has looked to intermediate steps to build confidence in the region.

One approach suggests the NPT States Parties in the Middle East supplement their existing verification agreements with the IAEA in order to encourage an atmosphere for Israeli nuclear transparency.[73] Such measures could include a

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[69]Karem, p.96.
[70]Karem, p.9.
[71]Cohen in Kahn, p.120-121.
[72]Cohen in Kahn, p.122.
[73]Additionally, Arab accession to the Chemical Weapons Convention offers an opportunity for the Arab states to build

declaration of all activities involving fissionable material, storage of spent fuel with an outside party, and inviting IAEA inspections to dispel any suspicions about particular activities.[74]

The underlying consensus is that IAEA safeguards [in Israel] would be an important move towards the establishment of a zone "..and could be realized well in advance of its adherence to the NPT."[75] Safeguarding the Dimona reactor would not in itself eliminate Israel's capability but it would place an upper limit on the amount of weapons material in Israel's possession[76] and help prevent Arab nations from entering the nuclear arms race.

As in the case of Tlateloco, safeguards would signify Israeli intent to reassure the international community that its security is not threatened;

> ..the first step towards confidence building among the parties in the Middle East conflict is an Israeli positive response to the will of the international community by placing its nuclear facilities under the safeguards of the IAEA.[77]

Israeli confidence in their intentions, providing an impetus for Israel to accept safeguards. However, it is likely that CWC accession will function as a bargaining chip for Israel's NPT accession.

[74]ibid. p.34.

[75]from the Lebanese statement in the First Committee, United Nations: New York, 10/21/92.

[76]"Establishment of a Nuclear-Weapon-Free Zone in the Middle East" Report of the Secretary General, October 10, 1990, paragraph 114.

[77]ibid. P.4-5.

The accession of South Africa to NPT safeguards enables the African Group to promote denuclearization of the entire continent more powerfully than in previous efforts-which demonstrated less consensus. Ideally, this will be linked to the Middle East effort.

Clearly, the scope of the NPT verification system is in transition because of increasing demands made upon it in various areas of nuclear proliferation and arms control. The IAEA's involvement in Iraq, Latin America, and the former Soviet Republics[78], as well as its expanded role in nuclear safety[79] point to an increasing role in the future NPT

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[78]Belarus, Ukraine, Kazakhstan have conveyed an immediacy in reaching safeguards agreements with the IAEA. The international community has also been pressing for an IAEA role in the Denuclearization of the Korean peninsula and in the South Asian Nuclear-Weapon-Free Zone. For North Korea, the safeguards issue is one of reciprocity; the IAEA, and more recently, the NPT have been rejected due to the perception that they are not being applied universally (to American bases in South Korea) In regards to the arms race between India and Pakistan, India's position is "...well known. Given the global reach of nuclear weapons, it is illusory to seek security through regional arrangements...That is why India has proposed an Action Plan for the ushering in of a Nuclear Weapon-Free World." (Prakash Shah, India, letter to the Secretary General of the Conference on Disarmament: 8/28/91.) India holds that while it supports non-proliferation in principle, it rejects the NPT as a discriminatory treaty. Although increasingly isolated and outspoken on this matter, India's claims serve as an important reminder of the range of discontent and of the larger, systemic issues at hand.

[79]as realized by the Chernobyl crisis, the dismantling of Soviet weapons, increased peaceful uses, and the Agency's future goal of managing a plutonium storage facility for peaceful uses.

framework. As such, this paper seeks to present verification as a dynamic concept within the context of an evolving NPT.

In conclusion, most UN member states feel the NPT to be instrumental in maintaining the international non-proliferation norm; as basis for shared practices and global nuclear verification. The treaty's normative and technical precedents are valued by the international community and are seen as an operational example of collective security. In the case of Nuclear-Weapon-Free Zones, practice and verification are interdependent concepts to confidence building. For these reasons, there is strong consensus that a global nuclear verification treaty is a necessity of international security.

Chapter Three: NPT Obligations and Collective Security

Although definitively, the Non-Proliferation Treaty (NPT) is an arms control, not a disarmament treaty, it is inexorably tied to progress made on disarmament. Conceived of as an interim measure against the proliferation of weapons

> while the definitive eradication of nuclear weapons is being negotiated.... The NPT implies the deactivation of the horizontal and vertical aspects of the nuclear arms race as one way of attaining nuclear disarmament, within a process of general and complete disarmament under effective international control.[80]

There are two facets of the treaty; the regulating of fissionable materials exports and, on the receiving side, a commitment to peaceful uses of nuclear energy. The nuclear weapon states' responsibility for non-proliferation involved disarmament, as expressed in the Preamble, and more succinctly, in Article VI. Here, in exchange for non-weapon states not acquiring weapons, the nuclear powers specifically vowed to pursue negotiations on disarmament and *ending the nuclear arms race.*

This understanding of the nuclear powers' obligations is the one held by the majority of those States Parties to the

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[80]Caledron, p.152.

treaty and remains nations' primary objection to simply reratifying the treaty at the 1995 Review Conference without close evaluation of duty fulfillment as laid out in the treaty's text.

Certainly, the 1991 Treaty on the Reduction and Limitation of Strategic Offensive Arms represents progress on the disarmament aspect of the nuclear weapons states' obligations under the NPT. The UN Secretary General has referred to the Russian Federation and American warhead cuts of 70% (over the next decade) as an "absolutely striking" historic accomplishment.[81] In addition to weapons reduction, the United States has recently implemented non-proliferation measures-such as a unilateral cut off of fissionable material-which it holds to be evidence of a serious commitment to Article VI.[82]

In the context of the professed NPT goal of complete nuclear disarmament, however, the relativity of the planned reductions in regard to the overall destructive capacity of (the remaining) nuclear weapons becomes apparent. Most ironic in evaluating progress on the nuclear weapon states obligations from this perspective is that the proposed

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[81]Boutros Boutros-Ghali. "New Dimensions of Arms Regulation and Disarmament in the Post-Cold War Era." United Nations Document: A/C.1/47/7. October, 1992.
[82]Ronald F. Lehan, United States, First Committee, United Nations: New York, 10/13/92.

reductions represent warhead levels which *still exceed those at the time the NPT was signed.*

> It is true that the East/West confrontation is gone, but the weapons are still there, and they are still being produced and sold. Our approach, our point of departure, perhaps has changed after the Cold War but our goals are still the same: the achievement of a more secure and therefore less-armed world.[83]

Non-Proliferation Treaty Obligations and the Qualitative Race

The nuclear weapon states' part of the NPT obligations recognized disarmament and ending the arms race (qualitative development) as factors affecting the motivation of other states not to acquire nuclear weapons-and that the two *together* make the commitment meaningful. Thus, if START and the INF Treaty are to be seen as viable signals of the nuclear powers fulfilling their obligations under the NPT, it is necessary to simultaneously establish a ceiling on the development of new weapons.

There is a fear among UN member states that the reductions may actually invoke complacency; a presumed positive security environment might overshadow persistent stalemates in multilateral disarmament.[84] This is

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[83]Miguel Marin Bosch, Mexico, First Committee, United Nations: New York, 11/11/92.
[84]Gaston Ibanez, Peru, First Committee, United Nations: New York, 10/16/92.

particularly relevant in the functioning of the NPT, which has so far been inadequate in preventing nuclear weapon states from developing weapons which would merely replace the ones being dismantled:

> The development of 'micro-nukes', 'mini-nukes' and 'tiny nukes' opens a terrifying dimension in the arms race, and could even weaken the achievements to date in the area of non-proliferation and of reductions. These qualitative developments could even go so far as to blur the traditional differentiation between nuclear and conventional arms. Moreover, given that the reasons for justifying the concept of deterrence have ceased to exist, the continued presence of nuclear arms could be interpreted as a potentially offensive posture.[85]

A scaling down of weapons, accompanied by "modernization" of existing arsenals implies only that there will be physical boundaries in which the qualitative race will continue. The continuing modernization of [U.S] delivery systems; improved performance requirements, tailoring weapons for specific purposes, and safety standards have resulted in replacement of bombs or warheads regardless of whether or not the stockpile size changed.[86] Historically,

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[85]Luis Fernando Jaramillo, Colombia, First Committee, United Nations: New York, 10/16/92.
[86]U.S. Department of Energy, p.10.

this tendency was reflected in the Cold War nuclear weapons program of making cleaner, smaller, more *effective* bombs.[87]

The post Cold War experience suggests a continued policy of modernization, albeit military planning's shift to a broader application of nuclear deterrence. For, "although the number and composition of these [U.S] weapons will change in response to changes in the Soviet Union, arms control treaties and the emergence of new nuclear weapon states over the next decade, "nuclear weapons are to remain "a fundamental element of U.S. military deterrent."[88]

Nuclear Weapons Testing and Security Perceptions

Gorbachev's plan for ridding the world of nuclear weapons by the year 2000 and the subsequent dissolution of the Soviet Union signified an opportunity for transforming Cold War security structures and moving away from a deterrence paradigm. Still, the most obvious and controversial aspect of ending the qualitative race has not changed from the Cold War era; the conclusion of a Comprehensive Test Ban (CTB)-either by amending the Partial

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[87](my ital.) Edward Teller. "Dangerous Myths About Nuclear Arms." Reader's Digest. November, 1982.
[88]U.S. Congress, p.81.

Test Ban Treaty to cover all tests, or through conclusion of a separate treaty.[89]

While non-nuclear powers see a ban as *sine qua non* for halting qualitative development, the nuclear powers have downplayed testing's role in propagating the arms race. This is particularly true in the case of the United States' which has traditionally stressed the significance of its disarmament measures over a cessation of weapons testing.

Nevertheless, the true significance of testing in relation to the arms race is evident in American policy statements. While stockpile reduction is presented as feasible, weapons testing is equivocated with the maintenance of the American national security interest.[90] The argument made by the United States is that testing assures weapons reliability, reliability is crucial to deterrence, and that *deterrence will continue to be the basis for national security in the post Cold War Era.*

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[89]The other trend which has characterized the qualitative race has been in the strategic placement of weapons in space. The hallmark of this policy was Reagan's reinterpretation of the Intercontinental Ballistic Missile Treaty in order to allow for his Strategic Defense Initiative. While many nations consider resolving this issue a priority after a CTB, the new U.S. Administration's position on space defense has reinforced the original objectives of the IBM Treaty. Still, positions such as China's maintain that the current legal regime is inadequate for preventing a future nuclear weapons race in space. For the purposes of this paper, however, the testing issue is more relevant; it demonstrates a higher degree of manifested polarization, majority consensus, and immediacy in the current process of multilateral negotiations with regard to institutionalizing non-proliferation.

[90]Conference Report, p.299.

The US nuclear program of the future must "continually perform research, development, and testing" to maintain technical superiority; it must rapidly respond to "unexpected actions taken by the nation's adversaries such as treaty violations or technical breakthroughs."[91] This rationale for testing is guided by the perception that the system remains anarchical and therefore cannot prevent proliferation. Yet, this perception prevents the very circumstance under which this perception may be proved false.

For the international community, the primacy of the national security interest is sharply at odds with the language and purpose of NPT, which implicitly recognized the situational, if not temporary, nature of deterrence policy. Indeed, it was under the premise of ending deterrence that the non-nuclear weapon states agreed not to develop or acquire similar weapons. With the Cold War over, nuclear deterrence as the basis for national and international security is seen as an outdated strategy and, as such, nuclear powers need to review their policies.[92]

This divergence of views is:

> ...rooted in the different security perceptions of individual states...certain states have felt that, in the existing circumstances, the security interests of those states are promoted by developing new weapons, further refining existing ones, confirming the

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[91]U.S. Department of Energy. p.10.
[92]Sri Lanka, Conference Report, p.265.

> effectiveness of their stocks...Those states regard the agreed reduction of numbers of the basis of negotiated, binding treaties as a more urgent issue than a comprehensive test ban. Nevertheless, the great majority of States consider a comprehensive test ban as the key to halting the qualitative race and to progressive nuclear disarmament.[93]

As a result, the nuclear testing issue has come to represent the international community's perceived dichotomy between collective and national security; collective security has become the basis for rejecting the nuclear powers' national security argument for deterrence.

That the issue has continued to cause much debate in the changed environment is evidence of a multilateral stalemate for the United Nations. In 1992, the United Nations resolution on concluding a CTB passed with four abstentions; Israel, China, France and the U.K.[94] Only the U.S. voted no, in a hold out position on nuclear testing.[95]

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[93]UN Secretariat, "Background Paper on the PTBT Amendment Conference." PTBT/CONF/5. United Nations: New York, December 1990.

[94]China has repeatedly stated it will pursue a CTB after the US halts testing. France has recently shifted from a negative vote to abstaining; it required some tests but would observe the current moratorium and would work on consulting with the four other nuclear powers in the Conference on Disarmament. The U.K. will cease if the U.S. does, as its tests are conducted at the American site. Israel continues to play its nuclear option, though it is unlikely to test that option.

[95]The October 1992 U.S. Congressional plan allows 15-18 "safety and reliability" tests between July 1993 and November 1996, at which time the U.S. is required to conclude a multilateral test ban. It remains to be seen if the proposed timeframe for this 'phasing out' legislation will be sufficient to maintain international confidence in U.S.

The conclusion of a Comprehensive Test Ban prior to the Review Conference would greatly increase the consensus on the viability of the treaty and its obligations in the new world order. A CTB would decrease the possibility of the treaty eventually ending through *desuetude,* a situation in which a treaty is consistently ignored by one or more parties, with the acquiescence of the other States Parties.[96]

Quite distinct from the role testing plays in facilitating disarmament, it is the majority interpretation of a test ban's significance in relation to the NPT which is important if nuclear and non-nuclear weapon states wish to renew the treaty in 1995:

> A consensus decision decision is of the utmost importance to ensure the continuation in force of a healthy Treaty, as a decision by a majority of the Parties to the Treaty could jeopardize its future if the States Parties which vote against it consider that the decision is not binding on them.[97]

The power of the NPT majority lies precisely in those majority states' practices and the resulting norm maintaining

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objectives-especially with the testing limit set one year *after* the convening of the NPT Review Conference. Also, the legislation allows the U.S. to resume testing if a foreign state does so. Thus, any weapons explosions over the next several years, or possibly after, may hinder the prospects for a CTB-and hence, the NPT.

[96]Michael Akehurst. A Modern Introduction to International Law. George Allen and Unwin: 1984. p.39.

[97]Calderon, p.153.

function of international law and the institutions guiding those practices. As in Kratochwil's analysis of rights, the process of claiming rights is dependent upon practice. *Obligations are generated by the claiming process itself and are based on performance.*[98]

The larger issue of US practices in relation to other states' practices is thus brought to bear: unless states are prepared to do away with a community where interests are guided and protected by law, "... all members of the community must be at least potentially effective participants in this practice."[99] In this way, the pursuit of national interests can easily threaten the pursuit of collective security and, in doing so, the norm of non-proliferation.

Deterrence and the New International Security Paradigm

It has been largely established by those who test American weapons that testing is not necessary to ensure a credible deterrent.[100] This has further weakened the viability of the national security argument for testing. With testing extraneous to national security, the question becomes focused on the American rationale for obstructing collective security measures, ie. a test ban.

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[98](my ital.) Kratochwil, p.173.
[99]Kratochwil, p.173.
[100]Dan Stober on the 1991 Livermore Lab Congressional Report. San Jose Mercury News. May 24, 1991.

US security policies may be explained by the broader US position that a ban must be viewed in the context of a time when nuclear deterrence will longer be needed to ensure international security. Yet, the NPT ensures international security in its renunciation of deterrence policy. Again, this rationale creates a Catch-22 situation of deterrence in which the situation that would facilitate a test ban can never arise because of the absence of a test ban.

Member states see this logic as "..tantamount to ignoring the global nature of ensuring security" and by maintaining a strategic edge, deterrence legitimizes "...the acquisition of nuclear weapons as the ideal way to ensure security."[101] From this perspective, deterrence becomes a self fulfilling prophecy. Moreover, the United States is attempting to isolate its deterrence policy from international security concerns-and from impacting the behavior of other nations. The US national security argument puts the burden of proof on the global environment while the collective security argument does the reverse.

Certainly during the Cold War, the connection between deterrence and stabilization-and therefore security-was consistently made by the nuclear weapon states. The security concept of non-nuclear weapon states, however, grew from the assurance of verification, non-diversion, and Superpower

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[101]Pennaneach, Togo, Conference Report, p.276.

disarmament.[102] Thus, during the massive Cold War build up, the gap between hegemonic-or status quo-deterrence policies and non-proliferation policies grew increased *while the legal instrument mediating their common objectives (the NPT) remained intact*. As the superpower's NPT obligations were largely ignored in the following decades, NPT revisionism gained ground. The post Cold War era thus provides a chance for revolutionary revisionism to be institutionalized in a universalistic version of the NPT.

While the American justification for testing explicitly recognizes the connection of horizontal proliferation to decreased international security, the connection between horizontal proliferation and deterrence policy is consistently denied. To a certain extent, then, testing embodies a struggle both to define the international security environment and to determine its variables.

If the international security paradigm is to move away from deterrence, there is a normative role for international law in shaping new definitions. The NPT majority consensus on the legal obligations of the United States, for example, is helping to define appropriate practices for states in the post Cold War era. Moreover, a consensus definition of legal obligations is intrinsic to realizing a new international security paradigm. As Kratochwil has noted, the strength of a

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[102]Acton, p.60.

regime is derived from the acceptance of norm regulated practices, the crucial aspect being the level of institutionalization achieved through collective decision making.[103]

The new paradigm is part of the United Nations' broader concept of 'defensive security' which entails states' recognition of their security being indivisible and includes restraints on "expressions of national policy."[104] More specifically, the

> pursuit of military superiority, as a factor of the arms race, is not a guarantee of security, and is obviously incompatible with the notion of common security.[105]

The United States' distinction between its own security requirements and those of non-nuclear states delegitimizes its proclaimed position as a purveyor of collective security and non-proliferation. This perceived double standard reinforces the notion that the NPT itself is discriminatory and that the United Nations must remedy the imbalance of responsibilities which presently divide the nuclear haves and have nots:

It is thought that the NPT fails in

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[103]Kratochwil, p.63.
[104]"General and Complete Disarmament: Defensive Security Concepts and Policies." Report of the Secretary General. A/47/394. UNGA: New York, 9/22/92. p.36.
[105]ibid. p.37.

> ...promoting the concept of universality. We believe that the only way to achieve universality is to totally eliminate all types of nuclear weapons and transform the NPT into a convention banning the production, stockpiling and transfer of nuclear weapons. The World should consider an instrument to eliminate as well as non-proliferate...[106]

Elimination, as a goal which implies methods of equal application, was precisely the aim of the Chemical Weapons Convention, the universalistic treaty to be described in the next chapter. This chapter has shown that the international consensus on the value of the NPT as it stands is countered by strong consensus on the necessity of ending the qualitative race in order for the treaty to be meaningful.

The United States' national security argument for nuclear weapons testing is being rejected on the basis of its incompatibility with the definition of international security and the purpose of the NPT. In this context, the US' qualitative development is an impediment to changing the practices necessary to transform the competitive security system to a collective one.

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[106]D'ato Haji Muhammad Abdullah, Malaysia, First Committee: New York, 10/15/92.

Chapter Four: NPT Obligations and Fora for Negotiation

The instruments of redress available to the international community, short of treaty rejection, are built into the framework of the United Nations and into the provisions of the treaties themselves. Much the way deterrence masked a larger debate on security, superpower disarmament talks have masked a larger debate on democratic participation of the international community in determining the global security environment.

Nuclear Weapons Testing and the Amendment Conference

Added to the debate on the relevance of testing in the emerging world order is the coinciding sub-debate over the appropriate fora for negotiating a Comprehensive Test Ban (CTB). Although most states agree that unilateral, bilateral, and multilateral disarmament efforts are all relevant, there has been considerable disagreement in the case of a CTB.

The United States has emphasized that testing limitations must be negotiated in bilateral talks with the Soviet Union (and later, Russia); other member states feel that since the test ban is a priority for the international community, successful negotiations require an appreciation of

the security interests of all states-as defined by the States themselves.[107]

Indeed, impatience with the lack of bilateral progress on a CTB led at least fifty states to introduce a draft resolution for convening a multi-stage conference on converting the Partial Test Ban Treaty (PTBT) into a Comprehensive Test Ban Treaty,[108] as provided for in Article II of the PTBT.

The US and the UK were against the convening of the Amendment Conference. The UK thought the PTBT depositories should consider views on a test ban in the Conference on Disarmament, where participation would be more limited. The US objected to the possible linkage between the Amendment Conference and the NPT Review Conference, saying it would be spurious and detrimental.[109] Still, all three depositories of the PTBT-as well as abstaining Western and neutral states-convened with the rest of those States Parties.

That Article II of the PTBT was invoked by States Parties and not at the depositories' insistence-*as the Article had intended to be used*-was evidence of the leverage afforded by the non-nuclear weapon States Parties with reference to the testing issue. Moreover, at the time of the 1991 Amendment Conference, the amendment process would have

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[107]Egypt, Conference Report, p.270.
[108]Mexico's introduction to Res.44/106. October, 1989. United Nations, New York.
[109]The UNGA and Disarmament 1989, p.65.

brought several key threshold states who have signed the Partial Test Ban Treaty to accede to a complete ban, ie. Israel, South Africa, India, Pakistan, Argentina and Brazil.[110] Contrary to being detrimental to consensus on non-proliferation, the linkage of the Amendment and Review Conferences would have demonstrated the resolve of member states in adhering to the non-proliferation norm.

The U.S.' position on amending the PTBT, however, was that legal restraints were unlikely to affect the motivation of threshold states; the acquisition of nuclear weapons was attributed to nations' perception of "regional threats and rivalries." [111] Yet, at the same time, the United States credited the NPT with advancing international security and felt it should be extended indefinitely in 1995.

Thus, the US demonstrated the opposing policy goals of supporting the NPT *as is*-a treaty that recognizes the interdependence of vertical and horizontal proliferation-while maintaining that qualitative development is unrelated to horizontal proliferation; a logical extension of the deterrence rationale discussed in the last chapter.

The United States discounted the Amendment Conference as a "questionable and costly means" of addressing the problem.

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[110]Since that time, South Africa has acceded to the NPT and Argentina and Brazil have concluded joint agreements with the IAEA; formalizing the expectation that these states will explode a weapon.

[111]ibid. p.299.

"Testing limitations must be undertaken in a serious manner... in a step-by-step approach to further limits."[112] As a result, the US would not participate or finance continuation of the Amendment Conference. What the international community had seen as the most comprehensive and direct (ie. "serious") method of addressing the testing issue was delegitimized by the US position. In short, the new international security paradigm was rejected by denying the effectiveness of a more democratic approach to collective security.

Due to this lack of consensus on approach, the General Assembly recommended that pending a test ban, the nuclear weapon states should "suspend all nuclear tests through an agreed moratorium or unilateral moratoria."[113] As of 1992, Russia extended its moratorium in favor of a total prohibition on testing and, in the absence of multilateral negotiations on a CTB, offered the renewal of phased bilateral talks on further limitations.[114]

The 1991 Russian moratorium was a concerted attempt to create pressure on the United States with the eventual elimination of weapons in mind-as envisioned *even prior to*

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[112]Conference Report, p.298.
[113]Provisional Agenda of the UN General Assembly, A/47/100. New York: June 1992. p.125.
[114]Boris Yeltsin, letter to the United Nations Secretary General, 1/28/92. A/47/77. United Nations: New York, 1992.

the official dissolution of the Soviet Union. Several years prior, Sakharov predicted the Soviet Union would

> ...declare a permanent halt of nuclear tests... We can be firmly convinced that our action will make it politically necessary for the Western countries to take reciprocal steps. And the consequences will be of tremendous character...it will be possible to achieve the complete rejection of nuclear weapons.[115]

Without the U.S. matching Russia's efforts to commit to a CTB, bilateral negotiations have so far remained managerial, rather than reformist; the qualitative race still depends upon "negotiations which are beyond its power to influence but which are within its ambit of responsibility."[116] By insisting upon bilateral negotiations, nuclear weapon states have tried to structurally divest themselves of their own power in determining the future of the NPT and of their responsibility for proliferation.

Conversely, UN member states see the new era as one of *structural reform*; the post Cold War world understands that international collective security depends on the democratic participation of the concert of nations.[117] Still, the

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[115]excerpt from his last interview, The International Foundation, p.9.
[116]Acton, p.s 66-67.
[117]Colombia, First Committee, United Nations: New York. 10/16/92.

international community has largely had to abandon the amendment approach. The possible strengthening of the global non-proliferation regime would be negated by the United States not participating and, in turn, enhance the status of nuclear weapon states with respect to their ability to deny international pressure.

Original cosponsors of the Comprehensive Test Ban Treaty, Australia and New Zealand have most recently abstained on the continuance of the Amendment Conference; its outcome evidence enough the goal of a CTB could not be reached in such a manner.[118] They have refocused their efforts to another fora, the Conference on Disarmament, whose perceived effectiveness for producing multilateral treaties has come about with the 1992 conclusion of the Chemical Weapons Convention.

The Chemical Weapons Convention and the Conference on Disarmament

There have been several reinstatements of an Ad Hoc Committee on a Comprehensive Test Ban in the Conference of Disarmament (CD)-the single multilateral negotiating body available to member states. In the Final Declaration of the

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[118]Australia and New Zealand, First Committee, 11/16/92. It should be noted that there still is the possibility of resuming Amendment efforts and certain states have expressed a willingness to pursue this avenue.

United Nations Special Session of Disarmament, it was established that the Conference on Disarmament[119] would conduct its work by consensus, adopt its own rules of procedure and agenda, and take into account the recommendations made to it by the GA.[120] Under agenda item 2 of the Conference, which is devoted to cessation of the nuclear arms race and nuclear disarmament, states press the Conference to create ad hoc bodies with negotiating power.[121]

Although the Final Document recognized that the CD needed to have a smaller membership than the deliberative General Assembly to achieve maximum effectiveness[122], the CD has not achieved what was envisioned in the SSOD 1 document and thus, in response, nations are attempting to expand the Conference's membership to all interested states.

The current, general UN view is that while the nuclear weapon states must take most of the responsibility for disarmament, all states should participate in the relevant negotiations.

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[119]previously the Committee on Disarmament.

[120]United Nations Department for Disarmament Affairs, Final Document. First Special Session of the General Assembly on Disarmament, 1978. 87-16283-10M.

[121]While the issue of the arms race in outer space remains a high legal priority, actual negotiations for nuclear weapon states providing non-nuclear weapon states with negative security assurances is still considered to be the next agenda item for the Conference on Disarmament. Analysts of Nuclear-Weapon-Free Zones, however, have pointed to the fact that regional cases have become successful, in part, because they have not relied upon nuclear weapon states' security assurances.

[122]ibid. p.39.

> In order to promote universal adherence it is important that all states be allowed to participate in multilateral efforts on disarmament on the basis of equality and mutual benefit...we wish to stress that bilateral negotiations cannot replace multilateral efforts...[123]

In 1989, It was suggested that a step-by-step approach to a test ban, as advocated by the United States, would be best sought through the Conference on Disarmament and establishment of an *ad hoc* committee to initiate the substantive work there.[124] This approach remedied the lack of American support for the previously discussed amendment process while taking into account the international community's requirement for being involved with negotiations.

In 1990, these efforts were intensified by the General Assembly. Previous resolutions on the cessation of the arms race and disarmament were merged; the new resolution requested the Conference on Disarmament to establish ad hoc committees on both issues "with adequate mandates" to assess the Conference's potential for progress on the matters.[125]

Even so, In 1991 there still was no agreement to establish a CTB ad hoc committee and in 1992 the Conference was devoted to concluding the Chemical Weapons Convention.

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[123]D'ato Haji Muhammad Abdullah, Malaysia, First Committee: New York, 10/15/92

[124]Japan's suggestion. The UN GA and Disarmament. p.66.

[125]Bernauer, p.45.

Furthermore, without a negotiating mandate, even an established Committee would remain outside of the nuclear weapon states' realm of decision making.

Nevertheless, the conclusion of the Chemical Weapons Convention (CWC) has prompted the international community's conviction that the CD is an appropriate and effective forum to negotiate multilateral treaties:

> The Convention...constitutes an extensive exercise in cooperation and solidarity among the States Parties for the purpose of achieving the elimination of these horrific weapons of mass destruction once and for all...and bright prospects are undoubtedly opening up for the realization of nuclear disarmament, including the complete prohibition of nuclear tests, in the not so distant future.[126]

This has led to the conclusion that a CTB should be negotiated in the CD, within the next two years-prior to the NPT Review Conference.[127] Simultaneously, the successful outcome of a universalistic verification treaty has

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[126]the delegation of Peru. Report of the Conference on Disarmament, p.59.

[127]see most statements in the First Committee, Forty-seventh session regarding the 1993 agenda for the Conference on Disarmament. Indeed, at the 1992 session it was decided there would be an intersessional meeting to discuss expanding the Conference's membership with a view to discussing a test ban to include all nuclear weapon states. Statements such those made by the representatives of Nigeria and Finland, for example, stressed the need for nuclear weapon states to break the current impasse in the CD on a test ban and the need to limit the CD's upcoming agenda to concluding a CTB. (First Committee, 10/14/92. United Nations: New York)

highlighted the Chemical Weapons Convention as a model for future treaties:

> The Convention strikes, in our view, a delicate balance between security requirements and the legitimate concerns of the chemical industry. Its innovative verification arrangements will mark a watershed in the history of multilateral disarmament. Their scope and characteristics will doubtless be taken as a reference for future agreements and for tightening up agreements already in existence.[128]

According to the Chair of the treaty negotiations, the general elements of the CWC which would serve as a reference base for other regimes[129] include: non-discriminatory compliance measures, efficient verification of stockpile and delivery system destruction, challenge inspections, and a flexible weapons phase out period.

Under CWC provisions, all actions in connection with producing, stockpiling, or using chemical weapons are banned so that safeguards will not be discriminatory. States Parties are to receive international assistance (a voluntary emergency fund) and protection from each other in the event one is a victim of aggression involving chemical weapons. In addition, the Executive Council's composition gives

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[128]the delegation of Argentina, on behalf of Argentina and Brazil. Report of the Conference on Disarmament, p.58.
[129]Adolf Ritter Von Wagner, Chairman of the CD's ad hoc CWC Committee, First Committee, 10/13/92.

developing countries majority representation to balance regional interests.[130]

The responsibilities of States Parties, in agreeing to intrusive industry and challenge inspections is balanced by their treaty rights:

> One of the key factors convincing states to expose their chemical industries to international scrutiny to the extent required by the CWC, is the...stringent system for the protection of the confidentiality of information.[131]

Most importantly, the Chemical Weapons Convention's provisions are seen as the consensus point for concluding the treaty, and those provisions merge the universal application of safeguards with the flexible phasing out of chemical weapons.[132] Universal application is realized by the shared goal of eliminating stockpiles. As such, the Convention incorporates both arms control and, with the resulting ceiling on new chemical weapons, disarmament.

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[130]United Nations Office for Disarmament Affairs. "Conference on Disarmament Adopts CWC." Disarmament Newsletter. Vol.10,#4. New York, 1992. p.2.

[131]Johan Rautanbach, South Africa, CD Delegation, "Structuring the Verification Division of the Technical Secretariat" working paper. First Committee, 11/04/92. United Nations, New York.

[132]If stockpiles cannot be destroyed in the allocated ten year period due to environmental, technological, or financial problems, a limited extension is provided. Destruction includes those weapons abandoned on other territories or in any location under the state's jurisdiction.

The universal application of safeguards and balanced representation of the Executive depoliticizes the use of challenge inspections while the phasing out period allows signatories to benefit from the collective security arrangements *prior to disarming.*

Indeed, it is the elimination aspect that creates a situation in which universally applied safeguards are meaningful to States Parties. In the nuclear context, this has not been true; safeguards (on American reactors) have had no implication for a separately measured domestic weapons program.[133] Moreover, IAEA safeguards on US stockpiles are only meaningful after fissionable material is no longer being produced and a test ban has been implemented.[134] Vertical proliferation, in those states where deterrence is institutionalized, renders IAEA safeguards wholly inadequate.

Yet it is the elimination aspect which ties universalistic treaties to the new paradigm in the absolute sense:

> ...we support the Chemical Weapons Convention for the clear *global and*

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[133]The discrepancy in the nature of NPT and CWC safeguards was reflected in President Bush's final statement in the United Nations Security Council summit meeting of Jan 31. There, he reiterated support for the NPT and warned against proliferation while stressing that all nations must act together to ban the "scourge" of chemical weapons.(NGO Committee on Disarmament. "Security Council Enlarges Concept of Security" Disarmament Times. New York, 1992.)

[134]Berrhanykun Andemicael, Director, IAEA liaison office. United Nations, New York. 10/30/92.

> *therefore national security* benefits which will result from a total ban on an entire class of weapons of mass destruction.[135]

While industry/inspection measures aim to balance rights and obligations of the States Parties themselves, the universal application of safeguards on all States Parties translates to *an equal distribution of* the rights and obligations of States Parties to the treaty. As such, the normative structure of the CWC accommodates the practices necessary for realizing the new security paradigm.

The perceived overall compatibility of a non-discriminatory verification treaty in the post Cold war era means that functionally, the CWC may serve as a catalyst for action in other areas of disarmament. As a "global" regime, the CWC sets the precedent for similarly negotiated verifiable instrument for nuclear weapons.[136]

A consideration of the NPT's evolving structure with reference to the post Cold War environment and the modalities of the Chemical Weapons Convention signifies the conversion of the NPT into a convention banning nuclear weapons. A nuclear weapons Convention would be universalistic and

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[135](my ital) New Zealand. "Implementation of the Chemical Weapons Convention" Working Paper. United Nations: New York, 1992.
[136]Atal Behari Vajpayee, India, First Committee, 10/19/92. United Nations: New York.

therefore accommodate the new international security paradigm.

While the Conference's 1992 negotiations did not produce a test ban, the successful outcome has 1)renewed the faith that the Conference can, in fact, be a vehicle for truly multilateral treaties in the post Cold War era, and 2)has given impetus to the efforts of member states to reform the NPT in 1995 with a view to balancing the rights and obligations as embodied in the Chemical Weapons Convention.

From this it follows that if a CTB were concluded within the multilateral auspices of the Conference on Disarmament, those states previously marginalized by bilateral negotiations would be brought into the realm of decision-making. That all states should help formulate the treaties which affect them implies a globalization of responsibility for disarmament. Shared responsibility is an implicit goal of and methodology for institutionalizing the new international security paradigm.

NPT Obligations and the Review Conference

As an arms control treaty, the NPT's unlimited duration is not a given; indefinite duration is a valid option if the treaty continues to be improved or if it is followed with new

disarmament measures.[137] Otherwise, its extension could be counterproductive; conveying progress on disarmament when actually, the opposite would be true.[138] For how long the NPT is to be extended in 1995 will be closely linked to nations' perceptions on the most effective way to curb nuclear proliferation. Only then can the treaty reflect the majority's consensus on the changed international system.

For most United Nations member states, the NPT already provides the technical verification framework which, if strengthened, would be adequate in preventing nuclear proliferation.[139] There is generally a high level of commitment to extending the treaty far beyond the 1995 Review Conference, although support of this kind includes fulfillment of Article VI by the nuclear weapon states.

Aside from the Amendment Conference, the Review Conference is the most comprehensive forum for NPT member states to address Article VI. As a result, the divergence of views on NPT obligations and weapons testing is manifested further in different views on the very function of the NPT's Review Conference.

Article X, paragraph 2 of the NPT permits the majority of States Parties to either extend the treaty for additional

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[137]Calderon, p.155.
[138]ibid. p.155.
[139]for example, see statements by Ireland, Egypt, U.K/EEC, Niger, Uruguay, Sri Lanka, Ukraine, Belarus, Afghanistan, Slovenia, Libya, Syria, Malta, United States, Canada. First Committee, United Nations: New York. 1992 session.

fixed periods or indefinitely. At the time of signing, this mechanism was seen both as a bargaining chip for the non-nuclear weapon states and as an admission that, within the fixed period, nuclear weapon states would continue the qualitative race.[140] The tension between these interpretations fuelled different perceptions of the role of the Conference in the life of the treaty.

During the Cold War, nonaligned and neutral states held the Conference's objective to be a critical examination for determining if provisions were being met and to adopt measures to remedy inadequacies. The nuclear weapon states and allies, however, felt the Conference was intended for strengthening the treaty through encouragement and effective safeguards.[141]

The first objective allows the treaty to evolve with changes in the international system while the second reinforces the provisions as negotiated in the initial circumstances. The debate on the Review Conference's function exhibits the same, albeit broader and less pronounced, element of tension between status quo and revisionist goals expressed previously.

The incongruity of the two was reflected in the last (1990) Review Conference, where the Final Declaration was

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[140]statements by Switzerland, ENDC/204 and Brazil, ENDC/PV.363.
[141]The UN and Disarmament, p.59.

lacking due to the absence of a CTB; reinforcing that both horizontal and vertical proliferation are important to the future of the treaty.[142]

As the NPT Review Conference nears, the recent additions of France and China are thought to be an impetus for reinforcing the treaty, as is. Similarly, the consensus on involvement in the Gulf, coupled with the subsequent inadequacy of the safeguards system has led to the conclusion that the way to strengthen NPT provisions is to strengthen Security Council and IAEA enforcement roles.

In this context, the treaty itself needs no revision.

On the other hand, some member states have expressed the concern that strengthening enforcement roles without an honest review of the treaty will foster marginalization. Cuba, for example, agrees on the principle of non-proliferation but has not signed the NPT and probably will not as long as the situation is such that an "unconditional extension" prejudges the work of the Preparatory Committee, the exchange of views, and universal application.[143] Contrary to the US position, unconditional extension of the NPT may actually *undermine* efforts to fortify consensus on it.[144]

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[142]Egypt, First Committee, 10/28/92. United Nations, New York.
[143]Humberto Rivero, Cuba, First Committee, 11/1192. United Nations, New York.
[144]Kidder Salazar, Venezuela, First Committee, 11/11/92. United Nations, New York.

A more radical position, such as India's maintains that controlling proliferation while substantial arsenals exist is futile; unconditional extension of the NPT is not the issue, reformation is.[145] A genuine effort would therefore entail equal application of safeguards under a new treaty prohibiting nuclear weapons.[146] With treaty reformation, the problem then becomes reaching consensus on the modalities for agreements reached at lower levels of armaments.[147]

With the 1995 Conference's Preparatory Committee having begun its work in May of 1993, the US still maintains the Review Conference is for deciding on the extension of the NPT. Other nations, such as Mexico and Nigeria, hold that the Conference will both review the treaty and decide on its extension. China sees the Conference purely as a means to review the treaty, not to decide on its extension.[148]

The 'review approach' creates a situation in which the present issue of testing plays a role in the future of the treaty and the status quo approach shifts the emphasis away from obligations of the treaty to the verification system of the treaty. This is an important distinction because if consensus is not reached in 1995, the cause may be attributed

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[145]Satish Chandra, India, First Committee, 11/11/92. United Nations, New York.
[146]Satish Chandra, India, First Committee, 11/11/92. United Nations, New York.
[147]Nuggroho Wisnumurti, Indonesia, First Committee, 11/11/92. United Nations, New York.
[148]statements by US, Mexico, Nigeria, and China in a Meeting of States Parties. 10/22/92. United Nations, New York.

either to the testing issue or the absence of a strong safeguards system. Furthermore, both causal explanations imply current justification for differing policy emphasis; institutionalizing a halt to the qualitative race versus tightening existing control measures.

If inclusion of the United States is necessary to have a meaningful treaty, the international community may adapt to its provisions but, in doing so, risk the consensus of the other States Parties. The concern for review is not just a struggle of effectively linking the NPT to testing-or not-but a debate about the function of reaching unanimity, or the highest level of consensus possible, on the text of the treaty.

In summation, the debate over American nuclear testing has produced a situation in which the international community has attempted a multilateral approach to institutionalize a ceiling on new weapons. The US, instead, has rejected this approach as it did during the Cold War, asserting its sovereignty in decision-making and essentially ignoring the changed environment and the other member states perceptions of their responsibility to halt proliferation.

The advent of the Chemical Weapons Convention has exacerbated the incompatibility of the US and international approaches by proving the multilateral approach to be both effective and acceptable. As a result, the CWC and, more succinctly, its universalistic elements, have become a

potential model for a similar treaty covering nuclear weapons. The CWC accommodates the new international security paradigm.

Finally, the international community's contention over US testing, the US approach to a test ban, and the non-universalistic nature of the NPT, has led to a divergence of goals for the 1995 Treaty Review Conference. While the US prefers to merely reinstate the NPT, other member states wish to review US policies in relation to treaty obligations, and reassess the structure of the NPT to fit the post Cold War environment. Together, these debates suggest that the NPT does not accommodate the new international security paradigm as a universalistic treaty would.

Chapter Five: The NPT and the Gulf War

The Gulf War affected the future of the treaty in a profound way; fueling primarily the status quo view of non-proliferation and the NPT. In the aftermath, some nations maintain that the international community should "place a heavier foot" in regions where there is a high potential for proliferation and that such pressure should be applied sooner rather than later, as an integral part of global disarmament.[149]

At the same time, the war brought about the realization that the NPT might be the future legitimizer for concerted military action against *any* non-complying member state by the Security Council:

> Although the crisis in the Persian Gulf has demonstrated that the use of force may be necessary to enforce international law, this experience reinforces the importance of finding other ways to prevent the need to resort to [war]...the United Nations can strengthen the principles of collective security in a manner that reassures all States that their security will be provided for.[150]

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[149]Fathulla Jameel, Maldives, General Assembly: New York, 10/1/92.

[150]"General and Complete Disarmament: Defensive Security Concepts and Policies." Report of the Secretary General. A/47/394. UNGA: New York, 9/22/92. p.51.

Prior to the Persian Gulf crisis, there existed no formal link between nuclear proliferation and the military option provided for under the Charter. This precedent, as well as the lack of NPT provisions for military action to be taken against treaty violations, kept the NPT from officially being used as a basis for the Security Council backed intervention. Indeed, critics of the NPT have pointed out that Iraq's treaty obligations did not include centrifuge research and, if a weapon had been found, could have resisted UN intervention on the basis that it "..was fully meeting its NPT obligations as laid down with its agreement with the IAEA"[151] Moreover, the determination of NPT violations rests exclusively within the competence of the NPT parties, subject to the procedures accepted by them.[152]

Even so, paragraphs 7 and 11 of Security Council resolution 687 asked Iraq to reaffirm "unconditionally" its obligations of the NPT and Geneva Protocol (ie.chemical weapons), *effectively merging treaty compliance with Chapter VII of the Charter.*[153] In the process of realizing collective security goals under Chapter VII, the non-proliferation norm was upheld as was its perceived enforceability by the Council. By invoking Chapter VII[154], the Security Council was

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[151]Leonard, p.12.
[152]Sur, p.32.
[153]Sur, p.s 30-32.
[154]Chapter VII authorizes the Council to take action with "respect to threats to the peace, breaches of the peace, and acts of aggression." Under Article 47, the Council's

able to justify mandating the IAEA's unlimited access to Iraq, its long term monitoring plan, and the task of destroying/removing nuclear weapons related materials found.[155]

Here, the Military Staff Committee was bypassed in its proscribed arms regulation/disarmament function under the Charter. Instead of using the MSC, the Council created a subsidiary body, the United Nations Special Commission (UNSCOM), to follow up on Iraq's disarmament activities. UNSCOM was mandated to work closely with the International Atomic Energy Agency (IAEA) to inspect, dispose of, and monitor Iraq's weapons in the long term.[156]

Prior to the Gulf War, the IAEA provided assistance to the Council based on a 1985 agreement to furnish any information in helping to restore peace. However, the information now being demanded of it by the Council is far beyond what has traditionally been within its jurisdiction.[157]

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requirements for restoring international security may include disarmament.

[155]Berhanykun Andemicael, Director, IAEA liaison office. United Nations, New York. September, 1992.

[156]Sur, p.49.The Commission was formed under Section C of Resolution 687 to seize and destroy Iraq's weapon production and long distance ballistic missiles capabilities. The result of the UNSCOM and IAEA partnership has extended the IAEA's responsibilities far beyond those agreed upon in 1985, ie. to provide whatever information may be needed by the Council to restore peace.

[157]Sur, p.51. The Agency's prime objective is to promote peaceful uses of nuclear energy. In the past its safeguards have been applied only to those nuclear sites which have been declared peaceful, verification being restricted to peaceful uses and the diversion of materials.

Furthermore, because the information on weapons is generally supplied to UNSCOM and the IAEA by member states, the IAEA has found itself suddenly highly politicized.

While special inspections and referral to the Security Council are provided for in the NPT, neither the IAEA or the Council have made use of this right prior to Iraq; the situation for enforcement never being brought into play. The rationale for intervention in Iraq was consistent with the Council's mandate for restoring peace but the persistence of intervention with regards to the nuclear program largely bypassed the NPT's intended legal mechanism for considering treaty violations.

Given, for example, the IAEA's history of not using the NPT's inspection provisions and the Council's non-enforcement of resolutions regarding Israel, it would seem that under normal circumstances any information obtained on Iraq's nuclear program would have been handled through sanctions, international diplomatic pressure, etc.

Furthermore, the imposed and discriminatory verification of Iraq's compliance differs fundamentally from the intended verification mechanisms of the CWC, which rely upon consensus and reciprocation to be effective.[158] If the non-proliferation norm is selectively enforced in connection with

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[158]Sur, p.35.

the NPT, the treaty will be perceived as non-universalistic and therefore at odds with the new security paradigm.

The ability of States Parties to invoke special inspections on any signatory, as in the CWC, increases the legitimacy of the treaty's claims on national sovereignty. From the point of view of NPT States Parties, their obligations may seriously compromise sovereignty if the power of the Security Council is abused.

The arguments against forced compliance incorporate exactly this problem; Iraq's government has objected to the intervention against it as a new hegemony "spearheaded and intensified by the United States"[159] and displayed through Security Council resolutions which were political exercises "conspicuous for their double standard and selective criteria." For Iraqi officials, the "so called international legitimacy" showed the imbalance between obligations and rights-which were distant from the provisions of international law embodied in the Charter.[160]

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[159]Article 47 require member states forces to be under the command of the Military Staff Committee, comprised of the permanent Council members' appointees. The MSC is then "responsible for the strategic direction of any armed forces placed at the disposal" of the Council. The predominance of US military forces in Iraq magnified the problem of using UN instruments without proscribing to its processes. This helps to validate Iraq's reference to the US' hegemonic tendencies. In this way, Iraq has brought up the longstanding issue of breathing life into the MSC and the conscription of UN military forces prior to the outbreak of war.

[160]Mohammed Saeed Al-Shahaf, Iraqi Minister for Foreign Affairs, General Assembly: New York, 10/1/92.

Certainly, the situation described by Iraq is one in which the nuclear weapon states have enforced the perception that (Iraq's) horizontal proliferation poses a collective security threat *as specifically recognized by the obligations it holds under the NPT.* Yet the US has neither recognized its own NPT obligations for ending qualitative development nor, as a weapons possessor, has it fallen under the same treatment from the IAEA. In this context, US involvement in redressing NPT violations (and its veto power) starkly contrasts with those *seeking the same rights of membership but who carry the burden of the obligations.*

Since Iraq, the nuclear weapon states' emphasis has been on strengthening of the IAEA's machinery to be more intrusive, backed by the new post Cold War ability of the Security Council to enforce both challenge inspections and measures against violators. From their perspective, the treaty's increased effectiveness hinges upon the regular implementation of challenge inspections and the necessary funding to back such a comprehensive verification regime. While this approach is feasible, *it does not take into account fundamental imbalances in the NPT as lacking a base for legitimizing such proposed collective security actions.*

So far the status quo (treaty 'as is') approach has manifested in the strengthened link between the Security Council and the IAEA. It is now widely believed that a strengthened inspection function must be available to NPT

Parties to keep the treaty viable. Inspections cannot, however, be a truly collective instrument as long as they are enforced by the Security Council *in connection with the treaty's verification system which Council members are not subject to.*

A 'defensive' collective security system based on the UN Charter requires that all states act in accordance with international law and signal their intent through practical political steps.[161] This idea upholds the logic of enforcement under Chapter VII, the Non-Proliferation Treaty, and the Final Document, the latter two giving particular emphasis to the notion that nuclear disarmament is crucial to the security of all states. While the Charter gives the Council enforcement power to maintain security, however, the NPT asks the Council-albeit as individual states-to commit to a more democratic notion of security.

The view of collective security as an enforcement of order among autonomous states is different from the collective management of armed force, the latter being indicative of a larger move towards a reorganization of the international system.[162] If the Non-Proliferation Treaty is

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[161]"General and Complete Disarmament: Defensive Security Concepts and Policies." Report of the Secretary General. A/47/394. UNGA: New York, 9/22/92. p.37.

[162]Andrew Hurrell. "Collective Security and International Order Revisited." International Relations. Vol. XI, #1. David Davies Memorial Institute of International Studies: London, 1992. p.40.

expected to collectively manage force, it will be at odds with an autonomous enforcement body upholding the political status quo.

In this way, the further enforcement of the NPT by the Security Council, without its universalization, would marginalize those committed to the multilateral approach and perhaps, more crucially, increase the perception that *those states in a position to enforce the treaty can do so because of their monopoly on nuclear weapons*. As one delegate has stated:

> At a time in which this Organization endeavors to define the parameters and instruments that will consolidate a true international democratic community, disparity and discrimination can only be counterproductive, and evoke for many countries the specter of interventionism. We will be forced to speak of the new world chaos if a handful of countries insist on setting themselves up as guardians of an international security which they define according to their own interests.[163]

In this context, revolutionary revisionism of the NPT may be a necessary preemptive step for guarding against states' broader alienation from the international system and the norm of non-proliferation. Ironically, the danger of proliferation may actually increase as a response to the Council's use of force to stop it:

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[163]Luis Fernando Jaramillo, Colombia, First Committee, United Nations: New York, 10/16/92.

> One question the war has raised is whether the deterrent effects of weapons of mass destruction are now the only capabilities which can prevent a State from having [Council] enforcement action taken against it...[164]

Already, the issue of Council membership is likely to cause further debate; that after the disintegration of the Soviet Union "...the role and place of the economic giants like Germany and Japan have to be reconsidered."[165] Expanding the Council would provide a means of diffusing centralized decision-making on international security matters. Similarly, replacing the United States military leadership with that of the Military Staff Committee would help to alleviate fears of the US exercising its hegemony through Council actions.

Even so, perceived abuse of the new, post Gulf War institutional links may be exacerbated in the future by the use of outside information selectively gathered. In Iraq's case, the IAEA maintained:

> Inspections must continue of any sites or objects designated by the United Nations Special Commission [UNSCOM][166] on the

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[164]Simpson, p.146-7.

[165]Jon Baldvin Hannibalsson, Iceland, UNGA: 9/28/92. United Nations, New York.

[166]The Commission was formed under Section C of Resolution 687 to seize and destroy Iraq's weapon production and long distance ballistic missiles capabilities.The result of the UNSCOM and IAEA partnership has extended the IAEA's responsibilities far beyond those agreed upon in 1985-ie.to

> basis of new information available to it...supplementing the UN Special Commission's database with data from other states.[167]

In addition, to address the concern of undeclared sites in the future, the IAEA is currently considering proposals under which member states will give the organization information regarding the export of sensitive equipment and materials "...to verify that reported inventories in a given state are consistent with the state's declared nuclear activities."[168]

If future IAEA special inspections are to operate on the premise that certain sites should have been declared by the State Party[169] (in their safeguards agreement) then inspections with significant political implications require information from those national governments that have the advantage in gathering information and, in some circumstances, are prone to bias.

Moreover, the use of the IAEA as a liaison between the NPT and Security Council runs the risk of engaging external politics and, as a result, of being perceived as an

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provide any information needed by the Council to restore peace.

[167]Hans Blix, Director General of the IAEA, UN General Assembly: New York, 10/21/92.

[168]Valerie A. Gillen, ed. "IAEA Inspections and Iraq's Nuclear Capabilities." IAEA Division of Public Information: Vienna, 1992.

[169]Hans Blix, Director General of the IAEA, UN General Assembly: New York, 10/21/92.

inappropriate instrument for multilateral arrangements. "Depolitization" of the IAEA, therefore, largely rests with reaching consensus on what constitutes extraneous issues.[170] Such a process implies enlarged representation and consensus-building approaches within the Agency itself.[171]

To conclude, the Gulf War provided a situation in which the Security Council emphasized the danger nuclear proliferation poses to international security. The corresponding institutional changes could potentially politicize the IAEA to the extent that it would be perceived as an inappropriate instrument for implementing verification under the NPT.

The new institutional link of non-proliferation to Council enforcement highlights the division between those states subject to the NPT and those able to enforce it-or the imbalance of rights and obligations which characterize the treaty. Thus, even if Germany and Japan take on more responsibility for funding multilateral institutions, the advanced industrialized states must still invest in an alternative, non-realist, global security paradigm.[172]

A strengthened Council-NPT link presupposes the treaty is intact and that IAEA politization will not affect its role

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[170]Lawrence Scheinman. The Non-Proliferation Role of the International Atomic Energy Agency. Resources for the Future, Inc.: Washington, D.C., 1985. p.71.
[171]ibid. p.71.
[172]Nelson, p.37.

in implementing the NPT. Thus, states may perceive the NPT's normative and technical functions as instruments of a discriminatory security system, rather than a collective one; increasing dissatisfaction with the treaty.

Conclusion: Non-Proliferation and United Nations Institutions

The lack of progress on the part of the United States to pursue an end to the qualitative nuclear arms race in the context of its Non-Proliferation Treaty commitments has produced tension among the other States Parties to the treaty. This has been aggravated by the end of the Cold War in view that the US, despite arms reductions, is continuing with its policy of deterrence and nuclear testing.

The international community's consensus on the necessity of the United States fulfilling its treaty obligations indicates the perceived normative significance of international law and institutions in preventing nuclear proliferation. The related discourse on security, negotiations, and legal imperatives demonstrate the larger incompatibilities of deterrence (national security) and disarmament and non-proliferation (international security) as it is being defined by the international community in the new era.

Thus, it may be surmised that norm practicing and consensus building are considered necessary for collective, effective implementation of multilateral treaties and therefore, the realization of a new international security paradigm. More succinctly, the continued exchange of views and merging of national practices is seen as having far

reaching implications for member states' commitment to the relevant international institutions-and, as such, institutional effectiveness. The majority of the UN member states believe the process of building consensus has been insufficient in the case of the NPT and has resulted in a lack of institutional commitment.

In response, the international community is attempting to consolidate the non-proliferation norm through a multilaterally negotiated, Comprehensive Test Ban (CTB). A CTB would necessarily involve consensus, the merging of institutional practices, and a revamping of the Non-Proliferation Treaty (NPT). The NPT, once representative of states' effort towards ending the qualitative race, is now at odds with its professed goal due the political imbalance it has perpetuated between the nuclear haves and have nots.

While the Cold War paradigm overshadowed the implications of this arrangement, the post war paradigm has brought it to the forefront of the international agenda. Disarmament and non-proliferation under effective international control necessarily implies the sharing of obligations and technical responsibility refuted by the treaty's current arrangement. For the treaty to be consistent with the changed global environment and the new paradigm, it must *incorporate those practices considered necessary for fulfilling its purpose*.

Where norms are codified, as in the case of the NPT, the transformation of related practices requires a transformation of the institution itself. For the international community, meeting the goal of non-proliferation in the context of a new international security paradigm entails changing current practices with regards to qualitative development, restricted negotiations, and discriminatory verification regimes. The institutionalization of a universalistic global verification treaty thus involves a larger move towards institutionalizing the new international security paradigm.

In terms of increased effectiveness in verification machinery, a universalistic NPT requires a significant change in the duties of the International Atomic Energy Agency (IAEA). In the past, the IAEA's jurisdiction has been perceived as limited because of its past role in promoting peaceful purposes of nuclear energy rather than in enforcing its safeguards agreements. An expansion of the capabilities, involvement, and authority of the IAEA, accompanied by the extension of its scope to cover the nuclear weapon states would provide the international community with an institutional structure appropriate for the tasks associated with verifying non-proliferation.

An expanded IAEA would also facilitate the establishment of Nuclear-Weapon-Free Zones, as discussed in Chapter Two, and thus contribute to the trend of interlinking global and regional approaches to non-proliferation. Moreover, given

adequate financial resources, safeguards could verify storage and non-use of fissionable material from old weapons, a fissionable materials cut off, and international plutonium storage.[173] The resulting IAEA jurisdiction would allow the Agency to truly function as a global regulator of the non-proliferation norm.

It has been suggested that UNSCOM may provide some guidance for verifying the Chemical Weapons Convention and, eventually, for universally applied IAEA Safeguards. UNSCOM's mandate reflects that of the Chemical Weapons Convention:

> There are striking similarities...from the accumulation of baseline data, through the reduction/destruction phase, to the problems related to future compliance. Experience respecting challenge inspections, declared sites, undeclared sites are relevant...[174]

Furthermore, with the United Nation's limited resources, the integration of knowledge-and possibly functions-of verification systems will be the most efficient means of confidence building among states. This method is incorporated by the Colombian/Swedish proposal[175] to centralize the UN's verification machinery of the Biological

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[173]Hans Blix, Director General of the IAEA, UN General Assembly: New York, 10/21/92.
[174]"Verification in all its Aspects, including the Role of the United Nations in the Field of Verification." Report of the Secretary General. A/47/405. United Nations: New York, 9/16/92. p. 8.
[175]First Committee, United Nations: New York, 1992.

Weapons Convention, Chemical Weapons Convention, and the Non-Proliferation Treaty.

An integrated verification structure would accommodate those regions aiming for universal accession to several treaties at once. Yet each verification regime requires very particular technical capabilities; one organization could oversee the various agencies but, functionally, the bodies must be separate.[176]

Given this limitation, the application of verification technology could become the primary component of any universalistic arms control and disarmament treaty. Equal access to information technologies, for example, would enhance states' capabilities to monitor mutual adherence to IAEA safeguards. This would create a situation in which all NPT parties were equally capable of initiating challenge inspections based on information provided to the IAEA.

The creation of an international satellite monitoring agency, as put forth in the 1978 Special Session, would verify agreements and serve as a tool for crisis management under United Nations authority.[177] It is argued that if such

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[176]Berhanykun Andemicael, Director, IAEA liaison office. United Nations, New York. 10/30/92.

[177]France has drafted several proposals for this in the context of preventing an outer space arms race. The French Plan of 1991 affirmed the necessary of integrating space activities with disarmament. (A/47/405. 10/16/92. p.14.) It remains to be seen if this intended use is compatible with the US' (and possibly Russia's) plans for a Global Protection System and non-nuclear anti-ballistic missile defense capabilities. Transparency of US space activities, made

an agency had existed prior to the Iraqi invasion, the conflict would have been made official a great deal earlier and the Secretary General would have been able to employ remedies sooner.[178]

Similar 'early warning' logic was reflected in the 1992 Security Council summit meeting statement, which emphasized the importance of the UN's widening role in peace-keeping and preventative diplomacy in a strengthened collective security system.[179] Indeed, prevention is the most relevant aspect to halting proliferation, since nuclear weapons can be used long before the Council can designate aggression-or suppress it.[180]

In this context, crisis management may end up being the most important key to the future of non-proliferation. For, despite the advent of universalistic treaties and more effective verification technology, the possibility of acquisition will still exist. The crucial role of crisis management is that it increases the ability of member states to identify situations in which tensions are high and arms

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available to all member states, would decrease the potential for misuse of GPS technology-ie. in continuing the qualitative race by other means. The defense system approach introduces a new level of military strategy-which would encourage an elitist (secretive) component while the monitoring approach aims to strengthen the legal resources available to most member states and allow them access to verifying universal compliance.

178Johansen, p.561.

179Disarmament Times. p.8.

180Claude, p.194.

escalation imminent, thereby enabling early action with the goal of preventing nuclear weapons from being used.

Crisis management under Charter directives has so far meant an increasingly active Security Council. Indeed, the premise of the summit meeting follow up document, the Agenda for Peace, is that without the Cold War veto, the Council may pursue its responsibility for international peace and security under the Charter. Moreover, Agenda For Peace tools[181] are envisioned as a link to disarmament; peacekeepers are familiar with weapons inspections and troop withdrawals and arms limitation is significant to future UN peacekeeping.

The Agenda maintains that disarmament in the context of a Security Council resolution/peace enforcement is distinct from disarmament via negotiation. Despite the overlap in weapon inspection and disposal demonstrated in Iraq, the two are to be kept separate. In this objective, the Organization is attempting to insulate states from possible misuse of disarmament enforcement.

While UNSCOM addressed the fear of proliferation in the Gulf, its inception created new fears of political abuse. Indeed, the ideas expressed at the summit and in the Agenda

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[181]Peacemaking entails peaceful conflict resolution-mediation and negotiation-after preventative deployment of troops (ie. at a border) has failed. Peacekeeping is more intrusive, either as an alternative to war or to help guarantee negotiated settlements. Peacebuilding refers to post-conflict measures such as disarmament, elections and human rights monitoring, refugee repatriation, and institutional reform.

were stimulated by the Gulf War experience; states were uncomfortable with the lack of Charter implementation in regards to provisions for collective security.[182] One way in which the Charter could be used to institutionalize non-proliferation in a less threatening manner would be through consistent use of sanctions. NPT obligations should, in reality, "...make a nuclear program more costly to the state that violates its undertakings..." and provide a base to impose sanctions.[183]

As a complement to collective sanctions, the Agenda addresses the need for collective access to technology through its information-oriented prevention strategy. "Fact finding" involves access to accurate information, the understanding of global trends, and a willingness to take preventative action-such as diplomacy or troop deployment.[184] Institutionally, this type of response requires close cooperation of the specialized agencies and offices of the

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[182]Rivlin, p.108. Under Article 47, the Military Staff Committee is responsible for disarmament enforcement and because it remains inactive, Charter implementation implies the Committee be utilized.

[183]Nye, p.1294. Nye notes that US, Canadian, and Japanese sanctions set back India's nuclear program, despite India not being a signatory of the NPT.

[184]Boutros Boutros-Ghali. An Agenda For Peace. Report of the Secretary General pursuant to the statement adopted by the Summit Meeting of the Security Council on 31 January, 1992. United Nations: New York, 1992. p.14-16. Fact finding is provided by member states and can be formally mandated by the Security Council or the General Assembly. Envoys of this nature can help diffuse disputes, indicating the Organization and/or the Council has designated the situation a potential threat to international peace and security.(p.15)

UN, and an extended link to all regional organizations.[185] Much the way "global" NPT safeguards facilitate regional non-proliferation efforts, a global information network would allow for regional confidence building.

Prevention strategies, if accompanied by a strong commitment and institutionalization to a non-proliferation norm, including the universalization of the NPT, would enable the UN to actualize the new international security paradigm and perhaps a more collective security system as envisioned in the Charter. However, as long as some states continue to possess nuclear weapons, others will seek to develop them; delegitimization must be part of the process.[186]

Systematic delegitimization requires the international community address nuclear proliferation on various levels. The United Nations is in a unique position to advocate non-proliferation as a multidimensional issue by incorporating it as a goal of other UN institutions. Most importantly, if nuclear weapons are associated with the global violation of

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[185]ibid. p.16. In order to accurately analyze potential security threats, the Secretary General has suggested a restructuring of the Economic and Social Council with a view to its providing reports, in accordance with Article 65, on those developments requiring mitigation.

[186]David Albright and Mark Hibbs. "Iraq's Quest for the Nuclear Grail: What Can We Learn?" Arms Control Today. July/August 1992. The Arms Control Association: Washington, DC., 1992.

human rights and global environmental degradation, the norm of non-proliferation will become stronger.[187]

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[187]As argued by David P. Forsythe, in "Human Rights In a Post Cold War World." The Fletcher Forum of World Affairs, Vol. 15, #2. The Fletcher School of Law and Diplomacy: New Jersey, 1991.

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